

Spotsylvania County Board of Zoning Appeals

Board Room, Holbert Building - 9104 Courthouse Road, Spotsylvania VA 22553

MINUTES: July 15, 2025

Call to Order: Mr. Bell called the meeting to order at 7:00 p.m.

Members Present:

John Winkler	Battlefield District
Elijah Brown	Salem District
Gregory Bell	Lee Hill District
John Thillmann	Chancellor District
Larry Bramlette	Courtland District
Cindy Robinson	Berkeley District

Staff Present: Paulette Mann, Board of Zoning Appeals Secretary
Beth Shealy, CZA, Zoning Administrator
Rachel Carr, Zoning Manager
Scott Lamolinara, Code Enforcement Officer

Mr. Bell - It is now 7:00, so we will call this meeting to order. The chair now declares the July 15th, 2025 meeting of the Spotsylvania County Board of Zoning Appeals now in session. Welcome to the Spotsylvania County Board of Zoning Appeals meeting. I am Gregory Bell, the chairman of the Board of Zoning Appeals. I represent the Lee Hill district. The board members seated before you represent the six voting districts of Spotsylvania County. The members are Mr. Elijah Brown, representing the Salem district, Mr. John Winkler, representing the battlefield district, Mr. John Thillmann, representing the Chancellor district, Mr. Larry Bramlett, representing the Courtland district, and Ms. Cindy Robinson, representing the Berkeley district. We will move on to elections. At our last meeting, we did not have a quorum, so we could not elect officers. However, according to the bylaws, we are, at the first regular meeting in June, to elect new members. I will open this up to the board for any discussion regarding this. I know we have quite a few new members, so I'll open it up to discussion in terms of do we, and this is not self-serving, but do we want to maintain some of the positions?

Mr. Winker - Mr. Chairman, I recommend that since we actually raised this issue back in January, or whenever, I recommend that we keep the positions as they are, unless somebody wants to back out or contest a position. So, I motion that we keep the current leadership as is.

Ms. Mann – Mr. Hilldrup is not currently appointed, so we will need a new nomination. Please make sure you turn on your microphone, the audience is saying they can't hear anyone, and talk into the tip of it.

Mr. Bramlette - What I said was I'm getting ready to move, hopefully. So, I couldn't serve out any position. So, I have to take myself out of that group. But I would recommend that one of the new members be the vice-chair and learn how to be the chair for the next time around, because it's

going to still be new member no matter what. So, it might as well be a new member in a learning position to be able to move up.

Election of Officers:

Motion and vote: On a motion by Mr. Winkler, seconded by Mr. Thillmann, the BZA voted to elect Greg Bell as Chairman, Cindy Robinson as Vice-Chairman, and Mr. Winkler as Secretary.

Vote:

Ayes: 6 Winkler, Bramlette, Robinson, Bell, Brown, and Thillmann

Nays: 0

Absent: 1 Quann

Abstain: 0

The motion passed 6-0.

Mr. Bell - Before proceeding to the public hearing portion of this meeting, there are a few items on the agenda. Ms. Mann, can you just clarify for me on this one? I know because we did not have a meeting in June, I don't think we approved the April 15th meeting minutes.

Ms. Mann – That is correct, we will need a motion to approve the minutes of April 15, 2025.

Mr. Bell - I believe in attendance, that meeting was myself, Mr. Winkler, Mr. Hilldrup, and Mr. Thillmann. Is there any discussion around those meeting minutes? We'll approve. Second. All in favor? Aye. Opposed. Meeting minutes are approved for the April 15th meeting. As we move forward with the procedure for this public hearing, all comments are to be directed to the chairman of this board. There is not to be any conversation between those in favor and those opposed. Everyone speaking will present their case from the podium. Please state your name, address, and case number. You can get one of the sheets provided to you up front to refer to. Applicants or their designated representative will be given 15 minutes to present their case. The applicant's case is presented first, after which the opportunity will be given to those in favor of the request to present their views, then opposed, followed by the applicant's rebuttal. This will be the procedure for all public hearings before they are voted. The BZA can either vote the case this evening or delay it 30 days. The applicant can remain for that process or leave and be notified by mail of the BZA's decision.

Review & Approval of Minutes from April 15, 2025 meeting

Motion and vote: On a motion by Mr. Thillmann, seconded by Mr. Winkler, the BZA voted to approve the minutes.

Vote:

Ayes: 6 Winkler, Bramlette, Robinson, Bell, Brown, and Thillmann

Nays: 0

Absent: 1 Quann

Abstain: 0

The motion passed 6-0.

Mr. Bell - Having said that, Ms. Administrator, first case, please.

Mr. Winkler - Mr. Chairman, just one quick point. When they're giving their address, they might want to give their voting district as well so that we'll know which district they're in.

Mr. Bell - Thank you. Can you please give your voting district so we can know what district you're in as well? Thank you.

Ms. Shealy, Zoning Administrator - Mr. Chairman, before we get started, Susan Cooke of the County Attorney's Office is unable to attend tonight due to circumstances beyond her control. We're asking for a continuation of the Ratcliff and the Ramsey case until the August meeting. Ms. Cooke was authorized by the Board of Supervisors in their meetings to address the Board of Zoning appeals. In the past cases, Mr. Leming, which is one of the two cases we're asking to postpone, has requested three postponements. Mr. Leming had requested three previous continuances. In fairness, I would ask that you would grant a continuous for the Ramsey and the Ratcliffe cases.

Mr. Leming – Discussed his desire to move forward and that they have only requested deferral one time. There was muffled discussion about hearing all of the cases this evening and continuing to next meeting to allow the cases to be heard and allow for Ms. Cooke to be present at the next meeting.

Mr. Thillmann - So, what we would do is we'd have the hearing. We'd leave the record open for a subsequent meeting, at which time we would make a decision, I think. And in the meantime, if we had a question for the County Attorney, we could ask the question and get their input.

Ms. Shealy - Can I clarify what the county attorney's position is as far as what she would be doing at the meeting? She's not doing a presentation. It would be an address during the public comment portion of the meeting, which is permitted.

Ms. Shealy stated the applicant has requested deferral of their appeal until such time that the fully seated seven-member Board of Zoning Appeals can convene such hearing. She stated staff is opposed to the deferral because it's already been delayed and there are large advertising costs associated for each time it is delayed.

Mr. Thillmann - So we'd take care of the applicant, we'd have the hearing, leave the record open, make a decision at the next meeting, and by leaving the record open, we would allow anybody to say anything they wanted to if we had a question. I used to do it on the Planning Commission in Fairfax County.

Mr. Tillmann - So we'd take care of the applicant, we'd have the hearing, leave the record open, make a decision at the next meeting, and by leaving the record open, we would allow anybody to

say anything they wanted to if we had a question. I used to do it on the Planning Commission.

Ms. Mann - Right. We leave the hearing open.

Unknown speaker - We would take care of the applicant who wants to present his case, leave the record open, and at the next meeting, if someone else wants to testify in public, and it might be the county attorney, we would allow that, and then we would decide. Our bylaws allow for us not to make a decision on the evening of the presentation. There you go. Can then return to return within 30 days to make that decision. So automatically, it's open. Okay. But the bylaws do allow that. I think you'll agree.

Mr. Leming - Yes, sir. It's your bylaw. Don't require that you make a decision tonight in regards to the proposal, the Planning Commission and the BZA are completely different answers. You're the one, let me give you a point. I think you can leave the record open.

Unknown speaker - Right. But we'll allow you to put on your That's what I'm doing. Is that the case tonight? Yes, sir. Fine. I appreciate that. That happened. Well, it's my district. I'd like to accommodate you. Yes, sir. All right. I appreciate that.

Ms. Shealy - And for the record, I would like to say that this has been continued three times. Initially, it was in February, I believe, for the first case, and Mr. Lemming asked me to continue it. Which at that point, it had not been heard by the board, so I agreed to that. The second time, Mr. Leming asked for a continuation. It was granted. The most recent meeting, we did not have the meeting, but I was given the request and spoke to the chairman, and it was requested by Mr. Leming's office, again, if not him directly. But Ms. Healey was here, and it was requested at that time to have a third continuation. I would like to clear the record on that.

Mr. Bell - Does that mean that we have the hearing now, next month, 30 days, we can still have a further hearing within the decision, or is it strictly limited to the decision.

Ms. Mann – You'd leave the hearing open to allow the applicant and any citizens speak.

Ms. Shealy - There seems to be, and I'm trying to look through the bylaws, where I believe it states the board or the chairman or vice chairman may be able to consult with counsel to be able to get clarification. I want to make sure whatever we're doing I can see it completely here, and I'm reading it. I just want to make sure before we make any steps going forward.

Mr. Bramlette - Well, let me make a comment about that. My concern is that the applicant is ready to go. He stated in three different instances where the county attorney can't represent the board. I think we're on very good ground to have the hearing, not make a decision, decision until the next meeting. Then if the county attorney has a statement they'd like to make as part of a public hearing, we can hear them out, then we can make a decision. By that way, we take care of the applicant's concern. I don't want the applicant to go to court and say we didn't do what we were supposed to do. I'd like to give him the opportunity to make his presentation. That's all. I agree with that.

Motion and vote: On a motion by Mr. Bramlette, seconded by Mr. Thillmann to hear the Ramsey case this evening and continue to the August meeting.

Vote:

Ayes: 5 Winkler, Robinson, Brown, Thillmann, and Bramlette
Nays: 1 Bell
Absent: 1 Quann
Abstain: 0

The motion passed 5-1, with Mr. Bell voting no.

Ms. Shealy - the other case for the Ratcliff's, they have a variance also on the docket tonight. That one also I'm requesting a continuance for.

Motion and vote: On a motion by Mr. Thillman, seconded by Mr. Winkler to defer the Ratcliff's variance request to the August meeting.

Vote:

Ayes: 6 Winkler, Robinson, Bell, Brown, Thillmann, and Bramlette
Nays: 0
Absent: 1 Quann
Abstain: 0

The motion passed 6-0.

There was discussion about process and how soon cases need to be heard. There was also discussion about calling a special meeting.

Ms. Shealy - I believe that that is covered in the bylaws under, let's see, Article 3, Meeting Quorums and Voting, paragraph, it says, The BZA may adjourn and continue a regular meeting if all applications or other matters scheduled for a hearing cannot be disposed of on the day set. That would definitely apply for that one, but in the next regular meeting. That's the only thing that I see that would even address that.

Mr. Bell - Can you state that again, Ms. Shealy?

Ms. Shealy - The BZA may adjourn and continue a regular meeting if all applications or other matters scheduled for hearing cannot be disposed of on the day set. That may not really cover it, but that's the only thing that I see about continuance. The next schedule date, I believe, is on August 19th. I'm not readily finding anything else in the bylaws. We have continued to the next meeting, though, previously.

Ms. Ratcliff – She stated that she is prepared to present her case and will be willing to be continued to the August BZA meeting.

Motion and vote: On a motion by Mr. Thillmann, seconded by Mr. Bramlette, the BZA voted to hear the Ratcliff case this evening and continue to the August BZA meeting.

Vote:

Ayes: 6 Winkler, Robinson, Bell, Brown, Thillmann, and Bramlette
Nays: 0
Absent: 1 Quann
Abstain: 0

The motion passed 6-0.

Ms. Shealy - V25-0002: Deborah Sharpe requests a variance to Section 23-5.2.3(7)(A) of the Spotsylvania County Zoning Ordinance to allow residential accessory structures to be located in a front yard containing less than two (2) acres and to Section 23-5.2.3(7)(B) to allow residential accessory structures to be located closer than ten (10) feet from the rear and side lot lines. The property is zoned Agricultural-2 (A-2) and is located at 8000 Courthouse Road, Spotsylvania, VA. Tax parcel 47-A-103. Berkeley Voting District. Let me see if I can get my slides to work here. Thank you. Okay, so this is the background for this case. Tax Map 47A-103 is approximately 1.14 acres, and it's zoned Agricultural 2. Section 23-5. 2. 3, paragraph 7A of the zoning ordinance does not allow for accessory structures to be located in any minimum required front yard. In this case, that would be 30 feet due to the zoning district that it's located in. That minimum required front yard is measured from the property line. On any other lot, let's see, on any other property line, on any other lot, in any front yard, which means from the plane of the house to the front property line that is less than two acres or in the resort residential zoning district on any lot less than one acre. The property has multiple existing structures that are located in the front yard as well. The property is less than two acres, these structures are not permitted in the front yard. So again, that front yard is from the property line to the primary structure, which is the home in this case. So, with less than two acres, you can't have an accessory structure. It has to be from the plane of the house to the rear for that. And then there are structures on here also that the side and rear setbacks are not 10 feet.

A question was raised asking what is the nature of the structures. Are they sheds or kennels?

Ms. Shealy - Yes, sir. They're kennels. There's also a gazebo, a bee structure for the keeping of bees. There are structures that are sheds also, as well as the kennels. There are multiple ones. I do have that in another slide to go through what each structure is. Let's see. We got all those photos. I'm going to see. Okay. So, Section 23-5. 23.7 states, any residential accessory structure may extend into required rear and side yards, but will be no closer than 10 feet from the rear and side yard lot lines, or in cluster subdivisions, no closer than 5 feet from the rear and side lot lines. So again, this property has multiple existing structures that do not meet the required side and rear 10-foot setbacks. Okay, so this is the slide that shows the buildings that require a variance and the setbacks that were provided by the applicant and her contractor. The first building, I tried to number these. They might be a little bit difficult to see. See if I can point them out here. The first building here is the lean-to that was added to another structure, and it's 8 feet from the side property line, and that would be a required 10-foot setback

The structure number 2 is a bee pavilion, and it's 5 feet from the side property line, and it's located in the front yard. So again, it can't be located in the front yard for less than 2 acres. We're not ready for that yet. Okay. Building 3 is a kennel pavilion, and that is also 5 feet from the property line and located in the front yard. Building number 4, back here, is also a kennel pavilion. It's 5 feet from the rear property, so building 5 this is the property line, should be 10'. Building 5 is this little structure up here, and that's a greenhouse that's located in the front yard. It would meet the setbacks, but it is located in the front yard and it's not allowed to be in the front yard. Building 6 is a gazebo that's also located in the front yard, does meet the setbacks, but is not permitted in the front yard. And building 7, it's actually these two sheds back here, and both are on the rear property line, and one is also on the side property line. So, there's no setbacks for those. In conclusion, it's not a unique situation as there are many A-2 properties that have less than 2 acres and are also not permitted to have accessory structures in their front yard. Most Zoning districts in the county require a minimum of 10-foot side and rear setbacks. Examples of parcels that may have different requirements are proffered subdivisions, clustered subdivisions, and nonconforming accessory structures. So proffered subdivisions, clustered subdivisions, those are all provided in the ordinance and through the rezoning process. The property does not fall into any of these categories. The applicant has stated that she has a disability and requires these structures to be in close proximity to her home in order for her to utilize them. Approval of this variant's request will allow the existing structures to remain on the property in the existing locations. A permit will be able to be approved through the zoning office if this is approved tonight by the board. Denial of this variance will require the existing structures to be relocated on the property so that they meet the requirements or they would need to be removed. Are there any questions from the board for me?

Ms. Robinson - Were these properties given building permits?

Ms. Shealy - There is an application in for building permits at this time.

There was discussion about a hardship and whether they meet those qualifications.

Ms. Shealy - Right. If they meet those qualifications, then it can be approved by the board. In that case, it's not really opening it up to everybody because there is a hardship or there are other reasons why it's coming to you.

Mr Thillmann – The hardship here is her disability?

Ms. Shealy – Yes, sir, that's what is on the application.

Mr. Winkler - If we decide that we would allow this based on the fact that the individual has a disability under the Disability Act, the Federal Governments Act, et cetera, she would be okay, right? If we made a decision to be okay, it doesn't necessarily broaden out the approval for other applications in the same circumstances.

Ms. Shealy – They would all have to be heard on an individual basis.

Mr. Winkler - Also, one thing I did notice is that the actual house itself is at the very back of the property and can't go further back than that. That might, I don't think it's an exception because I think most properties on the homes will be more in the center or more in the front, but not at the very edge, one way or the other. So that might make a discrimination factor as well.

Mr. Bramlette - Those factors. To address your first comment about precedent setting. The ADA? We have never at this board that I've been sitting here, which is a little over 12 years, had a situation where what we did set changes in motion to the rules. The rules stated each case then has to come to us. It may be the same thing, but it still has to come to us for us to listen to what is there and then make a decision. That was what I was hoping for, and I was hoping the staff would say. Yeah, but that's the fact that we make a decision does not change the zoning. It doesn't establish a precedent. It doesn't establish a precedent for something else. Okay. All right. Thank you. Time for a hearing. Mr. Chairman, time for a hearing. Sure.

Ms. Robinson - I'd like to make a motion that we approve the request.

Ms. Robinson was informed the hearing hasn't occurred and we must allow the applicant to present their case.

Ms. Deborah Sharpe - 8000 Courthouse Road. I have to look up all the other information. Case number V25-0002. I'm in Berkeley district. I'm A-2 Property, Tax Parcel 47-A-103. The disability part comes in. I'm a 30% disabled veteran, but they weaseled that down to 100. I'm a newly retired, disabled, federal government employee. I've been at the house. I purchased it June 1993. Sorry, I'm in a lot of pain right now, but I love Spotsylvania. I actually drove through when I was stationed at the Pentagon as a POC, and I drove through Spotsylvania on my way to a good fishing place.

Mr. Bell – Ma'am if you need to take a seat at the table, that is permitted.

Ms. Sharpe - I'm good. I'm good. I drove through Spotsylvania and I said, how nice. What a little podunk place. Who wouldn't want to live here? And look where I am. I loved it. I bought my house in '93, returning from overseas in the military and things. But I love my property. I love Spotsylvania. Now that I'm retired, I'm going to put both feet in with Spotsylvania and do more charity work again and things like that. But getting back to the description of my property, I gave you a packet of expensive photos. The Gazebo, I can't stay out in the sun for a long time. I have RSD in three limbs. There's a lot to go with that. I have to have shade. In the January third, 1993 snowstorm, I lost all my trees, everything. So, I've been trying to build up trees. You see the gazebo? It's a simple one. I didn't realize I couldn't have any structures in the front yard. The one, this one is a dog kennel roof. There are more photos of various dog kennel roofs through storms and what not. They've all collapsed every single snowstorm. It's cost me thousands and thousands and thousands of dollars, put my dogs at risk, all kinds of things. It makes me, it makes it hard for me to have my animals and keep it clean if I can't put a sturdy roof over it. Other than carports, this is the only type of roof we could come up with. My neighbor's out back. I've known Mr. Heller, he passed away a couple of years ago, well over 30 years, like a father. He said, Deborah, I don't care what you do. He was going to sell me some acreage behind, but never got to it, and he passed away. His granddaughter doesn't want to sell me acreage, but she answered. She said, She doesn't

care as long as my things are on my property. She doesn't care how close to the proximity. The front yard. I'm not a good photographer. This is over a month ago, so you're more than welcome to come out. It's well more overgrown, well more gorgeous. But everything is right next to my house. I have two driveways. I have the kennel in the front yard. The beehive actually is set way more than 15 foot off the property line because bees have to be minimum 10 foot from the property line, your neighbor. So, it's 15 or 20 feet off the property line. They've been moved around three or four or five times over the years because of snowstorm disasters with roofing. And like you said, why are things in the front yard? Where else am I going to put things? One of the sheds in the backyard was well more than 30 years. I took it down. You could see my front porch, the white structure, the other dog kennel. I give my dogs huge room, 10 by 20s each dog, or some have two kennels for one. My disability elevator is right here, so I can ride around with my scooter or sometimes I use my John Deere zero turn as transportation. But my greenhouse, it's full of tomatoes for fall. What does my garden look like right now? Because of no rain and severe heat, it's gone. But in my greenhouse, I have all new plants ready to put in the ground. I'm severely disabled mobility-wise, but it's not, it's not a deterrent. It's just a challenge to do something different. Now, if I put my dogs, say if I put all the kennels in the backyard, it would be a mess. It would be a nightmare. I do the management for the dogs for the poop, and it's cleaned up. I know I had one neighbor complain about bizarre things, but she's very elderly, and she will find out what defamation means. But none of it's true. The lean-to is just another roof-on-roof jacks, not actually attached. Well, the roof jacks are attached, but it was the easiest way to let air through and not build up snow and weather like that. It's eight feet, if not more. I was going to get it surveyed again. I've had it surveyed four or five over the years. I just know my fence is two feet inside the property line. Then you can measure. I have neighbors that are well past the property line with their trees and everything on my property. These are some more kennel roofs that collapsed. This year, it cost me 2,000 just to get the snow out. My contractor answered the call and actually helped me get the kennel panels off, all the metal, all the snow out of the kennels. They were full. In the meantime, I had all the dogs in the garage. You know what I mean? To me, it's all about the dogs. I'm sorry, the kennel, the one in the front is closer than 10 feet. I hired them. They hired someone else, and it just became like that. The other neighbor didn't even respond. I only have that one neighbor who never really answered, but someone else signed for her, so I don't even know. But no one's ever complained. The dogs have been there. I've been there over 30 some years. I used to have Irish wolf hounds, so way bigger than Great Dane's. So, no one's ever said, Deborah, your yard stinks. Deborah, your dogs bark all day. In fact, they pull up and they say, Deborah, where's your dogs? They're looking right at you. So, I don't know what to say. Like, even the pizza delivery guy loves my yard. So, I hope you find for me. If you need any questions answered about the structures, we were in the middle of getting them ready to fix them up better, stronger, which wouldn't increase the footprint, just increase the wood and the weight. What do you call it? Stabilization or something. But my builder is here. He has plans or whatever to show you if you need or I'm finished.

Mr. Bramlette - Yes, ma'am. You said your builder was here because that was a, that could lead in, because I was going to ask you who your builder was and if he pulled permits in order to build these buildings.

Ms. Sharpe - He can answer that, but they did pull permits. So far, we're at a stop because we were, I don't think they pulled them timely, but we were in the middle of the repair from his other company, and everything was stopped. So they did submit the permits, but I don't know the status. I think this is all holding things up. I don't know. I don't know the process. Okay. He's here if you would like.

Ms. Shealy - I was just going to say that we do have an application for permits in-house at this time, but initially, there was no permit approved or issued for these structures when they were put in place. So, since that time, because we received a complaint, they have been applied for, and it's necessary for the board to approve this variance in order for it to go any further to be approved.

Mr. Bramlette - Are there existing permits for any modifications that I believe you mentioned that you were doing some modifications?

Ms. Sharpe - The buildings were never finished when building came up and asked for the permit, and I didn't know about the permit. I had my builder, so they talked to him. We weren't finished building. We were in the in the midst of trying to finish.

Mr. Bramlette - Ma'am, do you want your builder to talk to us?

Ms. Sharpe - If he can answer your questions.

Mr. Brown - Just for clarity, the kennel structure that's been up for how long again?

Ms. Sharpe - Since February.

Mr. Bell - As a follow-up to that, are all these your service dogs? Are you using them as a business?

Ms. Sharpe - No, I don't have a business. I have two service dogs. Both are being retired. I'm in the process of making two other service dogs from the great things. You have to let them get a certain age, and it's a lot of work. The rest are pets. I have a couple of bloodhounds. I used to help people find their dogs, but then I could walk better.

Mr. Bell - So this isn't a business that you're running?

Ms. Sharpe - I don't have a business. I just... I spend a lot of money on my dogs, and as old as I am, I can put them in better kennels. It's easier for me for them to be bigger, better, so I can clean them. You know what I mean? Some people just put their dogs in a small yard and little dog house, and that's it. I don't want to do that.

Mr. Bell - Mr. Bramlette, did you have some questions for the builder?

Mr. Bramlette, Yes, could I have your name, sir?

Builder - Hey, my name is Cody McBrone. I'm the project manager for Transylvania Group.

Mr. Bramlette - The question I have for you, obviously, you've been building in Spotsylvania County for a while. For I've been with those companies for about a year. Okay. I'm just curious as to why you would build in an area that is not permitted. I mean, the codes are out there for everybody, and they haven't changed any time lately. Why would you build something closer than 10 feet? Now, I can understand some issues in the back. There's not a lot of room, and there were buildings that are right up tight. But along the side, major structure that close to the line. We were under the impression that it was a farm.

Mr. McBrone, Builder - Everything that had come up in the records was that it was a farm. The other reason I have is that there was an existing concrete pad where the dog kennels are currently, and we put the roofing structures over those concrete pads.

Mr. Bramlette - All right. Thank you. He stated he is curious why the applicant would build without permits and less than 10 feet from property line.

Ms. Shealy - If it was a farm for an agricultural property authority that is putting structures on there that are farm exempt, they still have to pull a permit and meet setbacks.

Mr. McBrone, Builder – We were under the impression it was a farm.

A question was raised about the existing concrete pad and who poured it.

Ms. Sharpe - I had another company, Garcia Landscaping, came in to do the... I was thinking the pea gravel, or he said the concrete would be better. So we ended up doing concrete. He didn't do it correctly. Had to destroy I had to destroy all of it. And this was last year, and then had to redo it, and it's still not right.

Mr. Bell- Have you looked into what the estimates would be to remove those structures?

Ms. Sharpe – It's going to be crazy expensive. No. It was what I could do to get them put up after a third storm demolishing. The one in 22 demolished everything, all the kennels, all the houses, every single thing. When I had them, the kennels replaced. Then it was a scramble to find another flooring, another roofing. I went to everybody. Short car, one officer told, not here, but canine told me, get carports, and I'm just thinking how ugly that would be. I'm not trying to be ugly in Spotsylvania. I'm trying to be... My property looked nice. I mean, I wish the structure was shorter in height. I'm sorry it's a little close to the sides, but only one person on her side, it's just two feet. And she never said in her letter that, "No, I don't want it." The other neighbor didn't respond, and he's been noticed several times.

Speaking in favor or opposition:

Montgomery Wood, Berkeley District: I believe I'm in the Berkeley voting district. So, looking at her house straight on from the road, I'm right to her left, where the dog kennels are right next to

my property. Constant dog barking, dog poop smell. I asked her to keep the dogs quiet. She says my dog can bark 24/7. The bees, can't go outside your house and enjoy the property with bees all over here. Can't go outside without being barked at. I have a really nice property. Wanted to live there, but got it on the market, having a hard time selling because no one wants to live next to that dog kennel smell, noise, and bees. It's really adversely affecting my property, having all that right there within feet of my property. I almost think it's a nuisance because she's told me that she's had problems with the old lady that lived there for years, and it just seems like she's doing this to be a nuisance, which with all that land she had, she could have put it much further away from the property line, but she chose to put it within inches. Then she has a fence with electric fence on my side. So, if my dog decides to go over, my dog can get shocked, going anywhere near that property. To me, it's just everything about her is a nuisance. I'm just fed up with it, to be honest with you. You can't enjoy my property with that going on next door.

Unknown speaker - May I ask a question?

Mr. Wood - Yeah.

Unknown speaker - How long have you lived at your property?

Mr. Wood - I bought the house in October. Went through to fix it up, kept it. It's an old 1925 farmhouse. Basically, kept it the same, just cleaned it up, made it nicer. But it's basically the same house. If someone wants an old country house, they can come in and basically have the same feel, but more modern touch to it.

Unknown speaker - So, since October of 2024?

Mr. Wood - Yeah. That's when I think I bought it in October.

Unknown speaker - So, you were aware of everything that was on that property when you moved?

Mr. Wood - The kennel was new. She just threw that up in April. She has this kennel. Basically, I can't even get into it. She has cameras facing my front door, my back door. It's like I'm being stalked by this woman. So, Everything about this is obnoxious to me. I'm really disgusted by the whole thing, to be honest with you. I think it'd be a nuisance, there's a lawsuit that I may have to pursue to remediate this if you guys can't do this for me. That's where I'm headed with it because I'm going to lose money just dealing with her. I don't think anybody in the neighborhood should have to deal with that. That's all I got to say. Thanks.

Mr. Bell - Any members of the Board have questions? You had mentioned that there was an electric fence?

Mr. Wood - She has a 6-foot fence, and then she has electric fence about that far off the ground on my side, which I guess she assumes I'm going to weed whack it for because it's so close to my property line, she can't maintain it. But if my dog or anybody who goes over there, we have an opportunity to get electrocuted with probably 20,000 volts, which I think is obnoxious also. But I

understand from your last comment then that the fences actually own her property. I don't know. I mean, if you look at those maps, it looks like that building is on my property with that line. It's so close. I haven't surveyed it, but if she wants it weed-wacked or to look good, she can't do it because she's so close to my property, she would have to be on my property to maintain it. Everything's just so close. It's within that **fire** from my property line, which is just too close. It's too much.

A question was raised as to whether Mr. Wood has had a survey.

Mr. Wood – There are pins on the property. If you look at the pins, whether she moved them or didn't move them, I don't know that. But there are pins that if they're correct, her buildings may be on her property. But I talked to the girl at the permit office, and she said, it looks like those buildings are on my property. I would have to go- wait, you're probably going to have to get a formal survey, too. Yeah, so you'd have to have it surveyed But according to what your maps show, it looks like that could be actually on my property a little bit, which if it is, I want it moved.

Mr. Bramlette – You said your property is up for sale, correct?

Mr. Wood – Yes, but I don't think I can even sell it to anybody. No one will live there. I put it up on the market three weeks ago.

Mr. Bramlette – So the property would be surveyed at the time of sale? I don't know if that's required, but it's definitely wise. Do you always have your property survey, what they were buying and selling, so you don't have any issues?

Mr. Wood – Maybe, I don't know the Virginia law. There are pins there, so if they haven't been moved, that's been surveyed at some point. As far as their cleanliness of their kennels, I've taken pictures over the fence. The dogs have plenty of dog poop there. They're walking in it, probably laying in it. It's not a day's worth of dog poop. It's a week's worth of dog poop. I got a picture on my phone. I could show you now, but I printed it out, but I actually forgot to bring it with me. It's just it's not maintained like a daily thing. It's a week's worth of dog poop or more. I don't know. You can see where the dogs have been walking in it. But it's just, it's a lot to have right next to you, inches from your property line.

Mr. Bell – Thank you sir. Are there any other speakers?

Debbie Hall, Battlefield District: My mother resides next to Ms. Sharp. She's the one she referred to as the elderly neighbor. My mother couldn't be here tonight. She wrote a letter to the Board. She is in a rehab from a recent hip replacement. I don't really have a dog in the fight, but I wanted to mention a couple of discrepancies, I believe, in Ms. Sharp's submittal of information to you. One is she is listed on the website as a breeder, and she has several names as breeders. One is Mama's Dynamic Euro Great Danes. The second one is Mama's Bodacious Bloodhounds and Private Rescue. And I believe on that website, she lists corgi puppies for sale currently, three males and five females. So, she apparently is running a breeding operation. She's also advertising on

Marketplace. And currently, there's nothing listed there, but it is an option on there with her name. I question the ability of the contractor as well. I don't know what the square footages of the buildings are. That was not mentioned tonight. But apparently, since he needs a building permit, I guess they're over 256 square feet, which is for accessory structures. I know Mr. Cody is with Transylvanian Group. I know he's a Class A contractor. He has ROC license, which is a roofing contractor. A roofing contractor cannot build new structures. Okay? So permitted by DPOR, where his regulations are with his state license, he's not allowed to do that. He has to have even a home improvement contractor's license, or he has to have a commercial improvement contractor's license. I just wanted to point out those additional comments. Anyway, I'm in the Battlefield District. My mom lives there. So that's all I have to say. She wrote up that information that you have in that letter, and I initialed because she wasn't able to sign it.

Mr. Bell – Thank you. Any more individuals who'd like to speak during public comment? The public hearing is closed. Ms. Sharpe, you are granted your rebuttal period.

Ms. Sharpe - I would like to clarify the neighbor on my left side, they came up here and said all those nasty things. I met him. I said hi over my fence. He said he was flipping the house. He got it himself. He built it between him. Sorry. She loves you for some (referring to service dog). But he built it, rehabbed it. It was a full rehab. He's only been, the few times we talked, very nasty. So, I just leave him alone. He doesn't cut his grass, he doesn't maintain, whatever. So, I just leave it alone. I just stay in my own yard. The dog kennels, I used to clean them at five o'clock in the morning before I had to log in at seven. Now that I'm retired, I clean them probably about 6:30 or 7:00 when I'm up. They're cleaned every single day. Their pools are washed. They have pools in the summer. They're handwashed every day. The dogs are washed about every four or five days. They have feeders. I don't know what else to... It does not stink. Nobody has come over, even right up on the kennel. I was like, "Do you smell the dogs?" Since all this came up with the letter, and they're like, "No." It's, I don't want to live in a dog poop environment. I keep it clean. I want my dogs clean. Ferry Farm Animal Clinic manages all my dogs. She will tell you they're the healthiest on I'm going or I'm running down there immediately, and they're my most precious. I don't understand the obsession with me with the other neighbor. She's never said hi in 30 years. I just don't understand that, but we don't have enough time to go over all day. I just stay in my yard. I enjoy my little sanctuary, and if people don't like me, that's fine. The comment of the first neighbor that spoke saying that I had problems with a lady, she made, I don't know, hundreds of false reports to animal Control and the police, and she was told, "Do it again, you go to jail." Her husband actually was brought before Judge Ledbetter for the same thing, and that stopped it for quite a while. I don't understand the false reporting, but it's something they had the police over there all the time. I just left it alone. Animal Control knows me. Tidings was a Deputy, he's like, I called him up. I said, "Yep, that one passed away." Now the wife's doing it. He's like, "You're kidding." I think he was a lieutenant at the time. So, he just came back and made her stop. He told me, "Don't worry, we're not coming out. Your dogs live excellent, better than us." So, I'm telling you, you're more than welcome to come out. Announced or otherwise, you will see. Electric fences in A-2, I'm allowed to have them on my fence being inside or outside. They're well up off the ground, so you can weed whack. He's just not doing it since he moved in. It's been weed whacked for 30 some years. He let the grass grow 2 to 3 feet, whatever. But he bought the house to flip it. He

couldn't rent it out. It's a very small old house. He told me this himself, the next thing you know, it's on the market.

Mr. Wood, previous speaker, commented that they cannot live there because of all of the issues raised during his discussion.

Mr. Bell encouraged citizens to keep their comments to themselves and to not speak out of turn.

Motion and vote: On a motion by Mr. Bramlette, seconded by Ms. Robinson, the BZA voted to make a decision on this case, this evening.

Vote:

Ayes: 6 Winkler, Robinson, Bell, Thillmann, Brown and Bramlette

Nays: 0

Absent: 0

Abstain: 0

The motion passed 6-0.

Mr. Bramlette discussed the nuisance factor, if it is there or is not there has no bearing on this because the same factors would be in a case if the proper the buildings were in the proper location five feet further away. So, you know, that doesn't change anything as far as code goes for the buildings where they're located and so forth. Uh, in my opinion. All right. Um, so, yeah, it, you know, if you're living next to it, you don't like dogs, you don't like that. That's fine. Should have known that before you bought the property, I guess, but beside the point. Uh, and on the other side, if I look at these pictures correctly, uh, there's no buildings. That's not in accordance with code on that side of the property. There's a driveway there, am I not, correct?

Ms. Shealy stated there is a lean to on the shed at the end of the driveway.

Mr. Bramlette - Does it have a major impact on the other houses in the neighborhood and so forth? Those are all the kind of things you have to take into consideration. Uh, but I'm just saying that, you know, when I look at the picture, there's nothing in the front yard any further than the buildings that are to the right and the left. And so, uh, um, you know that that's my discussion.

Ms. Robinson - I would also like for you to keep in mind the handicap issue and the accessibility to what she has on her property.

Ms. Robinson - I do have a question. Okay. You talk about contractors and what they can build. Correct me if I'm wrong, any of you, is long as long as you go by County code, you don't have to have a contractor to build a building. You can have County code and inspections, and you can subcontract your own buildings. She wouldn't even have to have that gentleman to build a building. If she were able to build a building, knew County code, had the proper inspections, she could be a subcontractor herself.

Ms. Shealy - She could be the contractor herself if she wanted to as the homeowner.

Ms. Robinson - Exactly. And hire him to do the work. But apparently, I don't know if that's the way it's been applied for. I guess if he's doing the work, then he has to have the proper license. I'm assuming the county will check that out. It also depends on the amount of work, but he's a Class A contractor, so I'm assuming it's more than \$1,000, which requires licensing. Thank you.

Mr. Winkler - Just a quick question. For permits, are they supposed to be issued before construction or during or after? Structure requiring permits, do they have to be obtained before the actual construction?

Ms. Shealy - Yes, they do. As far as the licensing, it's a building requirement. Zoning does not require that.

Ms. Carr - Hi, yes. I'm Rachel Carr. I haven't met you yet, Cindy. Nice to meet you. I used to actually work with the Permit Center before I became part of the zoning team. And what happens is when a permit is applied for, it gets sent back to review by building and zoning simultaneously. And we both review our ordinances and codes. And then once we've approved the structures, the Permit Center then packages the application, and they review to make sure that the correct licenses are submitted through DPOR's website to make sure that they have the correct qualifications. And if not, at that point, the landowner is able to take responsibility through our landowner representative affidavit to be able to build it and subcontract it out under their own rights as a landowner. Do you have questions about the permitting process?

Ms. Robinson - No.

Ms. Carr - No? Okay

Motion and vote: On a motion by Mr. Bramlette, seconded by Ms. Robinson, the BZA voted to approve the variance for Ms. Sharpe

Vote:

Ayes: 6 Winkler, Robinson, Bell, Thillmann, Brown and Bramlette

Nays: 0

Absent: 0

Abstain: 0

The motion passed 6-0.

Mr. Bell – Ms. Shealy, are you ready to present the next case?

Ms. Shealy – Yes, I am ready for the next case. V25-0001: Mark and Melanie Ratcliff request a variance to Section 23-7.4.4(a) of the Spotsylvania County Zoning Ordinance to allow for a

family subdivision of a 9.2 acre parcel in which one or both parcels would be less than the 5-acre minimum lot size requirement in accordance with the River Protection Overlay District. The property is zoned Rural (Ru) and is in the River Protection Overlay District. The property is located at 0 Spotswood Furnace Road, Fredericksburg, VA. Tax parcel 5-A-2A. Chancellor Voting District.

Ms. Shealy - So, I have the parcels here. This is the one that's in question. If you could see my arrow moving there. So, parcel 5-A-2 was originally 14.5 acres. So that was these two together before they were created, and was the parent parcel of parcel 5-A-2A1. So, this was all one property. And then this 5-A-2A1 was subdivided. These two parcels were one parcel until parcel -2A1 was created as a 5.3-acre parcel on July 7th, 2020. When the applicants applied to split off parcel -2A, they were told by the case planner that they would not be able to split parcel -2A any further, as they would not be able to meet the five-acre minimum for both parcels. The Ratcliff's current residence is 4C-1-19, and that's this parcel here. So that's their current residence. The parcels are located in the River Protection Overlay. That ordinance states that the district is created to promote public health, safety and welfare by protecting valuable river resources that may provide drinking water and recreation. The district is to prevent water quality degradation from pollutant runoff from septic fields, construction sites, or material storage areas. This district is in addition to all other zoning districts where it is applied. And that is the reason for the larger lot sizes to prevent the degradation of the drinking water, etc. So let me get to the next slide here. The three lot size requirements for parcels located in the River Protection overlay are, if a parcel has a private septic system, it must have a minimum of five acres. This parcel does not have five acres. If a parcel is in a subdivision served by a private septic system and the lots are clustered to achieve a minimum of 50% open space or a rural preservation area. In PRR zoning, a 150-foot buffer is maintained as open space and or within a conservation easement along waters with perennial flow. The total number of lots may not exceed a density of one dwelling unit per five gross acres. This parcel is not located in a subdivision. If the parcel has public sewer, it is regulated by the underlying zoning district. This parcel does not have public sewer available. The Ratcliffe's would like to subdivide the 9.2-acre parcel into two lots. The zoning ordinance does not permit the subdivision, as a total of ten acres would be required for each parcel to meet the five-acre minimum that's required in the River Protection Overlay District. If the variance is granted and the parcel is subdivided, the resulting two parcels cannot both contain five acres, so they are unable to meet the requirement of the River Protection Overlay District. The remedy for this would be a boundary line adjustment with the adjacent parcel of approximately 0.8 acres. The Ratcliffs have spoken to their neighbor and they will not agree to that adjustment. The Ratcliffs are requesting a variance to avoid this law that's in place. Section 23-7.4.4(c), stated on the previous slide allows for two-acre parcels. If the total number of lots does not exceed one dwelling unit per five gross acres, even with all three parcels, and that would be their parcel that they reside on, then the parcel that's already been subdivided, is the parcel in question tonight. Even with all three of those parcels at 17.79 acres, the Ratcliffs would not be able to reach any more than three parcels or dwelling units, as that would require total 20 acres for the properties they own. In conclusion, this is not a unique situation as there are 1,411 existing parcels that are five acres or less in the River Protection Overlay District. The Board of Supervisors could amend the zoning ordinance, remove the five-acre minimum to allow for those 1,411 parcels to be less than five acres. Also, all newly created parcels in the overlay are required to have a minimum of five acres with a private septic system. I

spoke with the County's Environmental Department about this requirement, and I was told that the department would not recommend that in the future the Board of Supervisors remove or decrease the five-acre lot requirement for the following reasons. It maintains water quality by minimizing pollutant discharge from stormwater runoff, which the Chesapeake Bay act does not fully address on its own. So, this would be in addition to helping that Chesapeake Bay act. The County is now designated as a phase two MS-4 program, and the larger lots help limit impervious surface, reduce water stormwater runoff, and provide natural infiltration areas that aid in filtering pollutants before they reach the river. Smaller lot sizes may heighten the risk of runoff, contamination from fertilizers, pet waste, and other types of pollutants that compromise water quality. Smaller lots may also have long-term negative impacts on the County's ability to meet this for stormwater permit requirements, protect drinking water, and mitigate septic system failures.

Mr. Bramlette - Can I ask you a question? All three parcels are owned by the same individual.

Ms. Shealy - Uh, yes. Um. Actually, yes. So, there's the residence and then there's 2A, -2A1, I think it's -2A1 that is the one that was previously subdivided already. Right.

Mr. Bramlette - Thank you.

Ms. Shealy - Are we ready to continue? Zoning staff recommends the denial of this variance request, because the Ratcliff situation is the same as many other properties in the River Protection Overlay District, and because the overlay district serves a purpose that the County Environmental Codes Department considers important, the decision of whether to change the ordinance and allow greater density should be left to the Board of Supervisors. The Board can more fully investigate the matter to determine whether it wants the River Protection Overlay district to be upheld. In fact, this request appears not to fall within the BZA's authority to grant. Virginia Code section 15.2-2309 sets out the powers and duties of the BZA and states that the BZA is only authorized to grant a variance request when it meets the legal requirements. If the applicant fails to meet any one requirement, then the BZA does not have the authority to grant the variance. The requester has to prove that the legal requirements are met. Those requirements are: The strict application of the terms of the ordinance would unreasonably restrict the utilization of the property, or that the granting of the variance would alleviate a hardship due to a physical condition relating to the property or improvements thereon at the time of the effective date of the ordinance, or alleviate a hardship by granting a reasonable modification to a property or improvements thereon requested by or on behalf of a person with a disability. And these are the, um, these are the items that you have to look at as a board in order to approve a variance. The Ratcliff's do not appear to meet this requirement. The ordinance does not unreasonably restrict the utilization of the property. It restricts every property in the overlay district in exactly the same manner. There is nothing unique about the Ratcliff situation and I am unaware of any disabilities. Next they would need show the property interests for which the variance is being requested was acquired in good faith, and any hardship was not created by the applicant for the variance. The Ratcliff's are unable to show this to be true. The River Protection Overlay District was created in 1995. The Ratcliff's purchased parcel 5-A-2A on March 16th, 2007, which was three days after the recordation of the subdivision plat that created by HOA. The subdivision plat states on note eight that the property is in the River and

Reservoir Overlay Districts. The ordinance requiring a five-acre minimum to subdivide in the River Protection Overlay District, and that's county code 23-7.4.4, has not been changed since 2004. So, the requirement was the same when the Ratcliff's bought the property and the restriction was noted on the subdivision plat. Next is the granting of the variance will not be of substantial detriment to the adjacent property or nearby properties in the proximity of that geographical area. I agree that it would not do that. The condition or situation of the property concerned is not of so general or recurring in nature as to make reasonably practicable, practicable the formulation of a general regulation to be adopted as an amendment to the ordinance. This situation is of so general or recurring in nature, as to make it reasonable for the Board of Supervisors to adopt an amendment to the ordinance, if they choose to do so. The granting of the variance does not result in a use that is not otherwise permitted on such property, or a change in the zoning classification of the property. The relief or remedy sought by the variance application is not available through a special use permit or the process that is authorized in the ordinance at the time of the filing of the variance application. So, in summary, the Ratcliff's have to prove that they meet all of these requirements for the BZA to grant a variance. If they are unable to prove that they meet all of these, then we believe the Board of Zoning Appeals is not able to grant the variance because the Ratcliff's request does not appear to meet the statutory requirements for variance. County staff recommends denial.

Mr. Thillmann inquired about the soil type.

Ms. Shealy – I don't have this information. We don't do soil testing. We don't know. I don't have that information but maybe environmental may have it. I'm not sure what department might have that, but I don't have that. I will check into this.

Mr. Thillmann - What is this white line going through the property? Is that an overhead line?

Ms. Shealy – Typically that's what they are.

Mr. Bell - Are there any other questions from the board for Miss Shealy? There are no other questions from the board. Um, the applicant can come up and present, or their representative can present their case. And if you could state your name.

Applicant, Ms. Ratcliff: Good evening. I'm Melanie Ratcliff. This is my husband, Mark Ratcliffe, and we live on US Ford Road. The property in question is on Spotswood Furnace, which you could see on the map. So, I know that Miss Shealy just recommended against granting us a variance. It's now my job to convince you otherwise. I'm assuming since we were granted a hearing, that you most definitely have the authority to vote in our favor. Otherwise, why would I receive an email and a call that I could present our case? We could have been denied a hearing and we wouldn't be here tonight. I know the County wouldn't just take my money if the outcome was predetermined. I hope you will listen to my arguments and not rush to a decision. I implore you to review the facts carefully and not make a hasty vote. Postpone if it needs to further review the facts which it seems you all are going to have 30 days. I'm curious to know if any of you have driven by our property. They say a picture is worth a thousand words. I have a few things to help you visualize the situation. So, the first thing I want to show, Miss Shealy, is the video of my parcel. So, this is starting at one end of my property. All of that is my road frontage onto Spotswood Furnace. And you can see that

it goes a long way. And my desire is to have three home sites. There was clarification about the zoning category. So that was the video. That's all on Spotswood Furnace. So now the next video is in a subdivision called Barrington, which is about a little over two miles. And you can count there's one, two, three, four, five, six, seven. That's all the same road frontage as what I have on my property.

Ms. Ratcliff displayed videos of her property showing the road frontage that she has on her property vs. the neighboring development.

Ms. Ratcliff - Yeah. No problem. So that was the video. That's all on Spotswood Furnace. So now the next video is in a subdivision called Barrington, which is about a little over two miles. And you can count there's one, two, three, four, five, six, seven. That that's all the same road frontage as what I have on my property.

A question was raised about whether Ms. Ratcliff's property is part of the subdivision.

Ms. Ratcliff – Our property is not in a subdivision. The second video is Barrington. Yes. Um, that was rezoned to PRR. It was rezoned to PRR. To the third video is another subdivision that's in the River Overlay protection, called River. Glen. Now, this is the same amount of road frontage that I have. And again, you can see there are numerous lots. It's the River Overlay District, but it is not been rezoned for that. Okay, now there are certain restrictions within the that rezoning, but okay, getting back to it. So that's what I have as far as road frontage. Now let me show you what I don't have. So, the pictures I sent you tonight, the one is, uh, like Barrington right side. So, this is when you're coming up to the subdivision that you just saw the video on, where they have the two acres. This is going up to the entrance of the subdivision. Okay, go to the next one, which would be another Barrington. Again, that's a little bit closer view, all that green there. And then there's a sign. I don't know exactly how much that is, but I don't have anything like that because I don't, I don't have an entrance to a subdivision. They count that entrance to the subdivision lot land, as well as common parcels as part of their density to meet the one per five acres, even though their lots are only two acres. Okay. Go to, if you don't mind, there should be one that says River Glen. Yeah. So, this is a street view looking into the River Glen subdivision off of River Road. When you turn in, you see there are no homes on the left or the right. Once you go into where you see the treed area, that's where the two-acre lots and the whole subdivision starts. Again, that area is about 12 acres. I don't have that because I'm not in a subdivision, so I don't I don't have to have that. Okay. Um, I think there's one more for that for River Glen. No, it was just a picture. So again, so this is showing if you're turning off of River road, that is the entrance. Again, you can see all that is open space which the PRR zonings require that they have that. So let me now, so now I'll say our 14.2 acres has 2,082ft² of state-maintained road frontage. Our goal is three lots for our three children. There have been two large parcels granted rezoning to PRR, two which was Barrington, and PRR-3, which is River Glen. You'll see from these videos the same amount of road frontage in Barrington equates to seven home sites and six in River Glen. The PRR-2 zoning requires 20% green space and allows for lot sizes of two acres, while the PRR-3 requires 40% green space and the same two-acre minimum for a home site. In reviewing the documents submitted and recorded in the County, I have discovered that the land set aside for the actual roads into those subdivisions is used to calculate the density. This seems unfair. Strictly looking at the lots and their acreage

doesn't yield a 1-to-5-acre density. I'm not able to apply for a rezoning because I have less than 20 acres, so I actually fall within that little sweet spot to where if I had 20 acres or more, I could apply for a rezoning. But I don't have 20 acres, so I can't apply for it. I know there are fees required to rezone. I would gladly pay this. As we all know, the price of land and homes is outrageous and the proffers are about \$6,600 per lot. There are over 1,800 lots in the River Overlay District, and over 71% are less than five acres. We are .8 acres shy of meeting that five-acre minimum. It seems logical to grant a variance that's within a 10% amount. In our case, that would be 0.92 of an acre. But that's more than what I need. I only need .8. I was told by the County to pursue a lot line adjustment, but then told I couldn't get that because the lot that we live on is only 3.29 acres. And since they consider that nonconforming, it can't be more nonconforming. So, I can't do that. I was told also to pursue the .82 from a neighbor. Only one side of the property has someone that could give me the .82, because they own like a lot of land. But the land has been in this man's family for over a hundred years, and he is, he won't sell it to me. And I'd like to point out that no matter how you slice that pie up, if they would have let me take .82 from mine, or bought the .82 from this gentleman on the left, it would still only yield me three lots, which is what I need. In conclusion, I would ask what are the downsides of granting me a variance? I can't think of any. It wouldn't harm my neighbors in any way. Their lots are less than five acres and they've known my children for most of their lives. There are a few landowners in the River Overlay District that could ask for a variance in a similar situation, so you wouldn't be opening up a can of worms. There's like ten or less as individuals that fall between that less than 20 acres, but more that would need a small, would need a variance in order to or to get it rezoned. What are the positives gaining a source of revenue for the County in the form of real estate taxes? You would remedy the unfairness of the situation of us not being able to apply for a rezoning due to the fact that we own less than 20 acres, because I have no other recourse personally, it would allow us to have our three children live near us. We are Spotsylvania strong, committed to this community. I work at the Spotsylvania County Maintenance Complex, where I have been the bookkeeper for maintenance and construction for nine years under director, Will Smith, and Rusty Davis and Supervisor Mike Morris. My daughter, who is here tonight is a Wilderness Elementary teacher, my oldest son, Mitchell, is a firefighter at company ten here in the county. My son Mason lives in New York City, just had his first child, my first grandchild on the 4th of July. He is looking to settle back in this area where he grew up. You see my dilemma. To say this variance is extremely important to my family is an understatement. You have the ability to make us very happy. Thank you for your time and consideration.

Mr. Thillmann - When I drove out there, the reason why I asked the staff the question about the white spot on here, because I saw those overhead lines. The high power lines? Yes. You can't build under those.

Ms. Ratcliff – No.

Mr. Thillmann - Okay. And it looks to me like that's about 45% of -2A, because you have the little triangle spot on top. The house isn't going to go there. You can't build under there. So, have you looked at where the subdivision would take place, how you'd split it up?

Ms. Ratcliff - Yes. So, we've had it surveyed and we have had, uh, septic fields located so that we would have, if you are granted the variance, we would take the 9.2 and split that.

Mr. Thillmann – Yeah, but where would the houses go?

Ms. Ratcliff – Our oldest son, Mitchell, will speak to that.

Mitchell Ratcliff - My name is Mitchell Ratcliffe, for the record. Oldest son. Um, if you could pull it up on the computer, that would probably be the best illustration.

Ms. Ratcliff - So the area that of the lot that would be on the power line, obviously, you can't do anything with that. So, it would leave about, uh, two and a half, about two and a half acres closest to the power line. That would be a lot. And the house would be closer away from the power line.

Mr. Thillmann - So one lot would be five acres, one would be 4.8.

Ms. Ratcliff - We could do it that, we could do it that way. Yeah, exactly. We could, we would, we would like to have had more, uh, make it, you know, like a six and a three. But we're happy with doing.

Mr. Thillmann – That's what I was afraid of.

Ms. Ratcliff - Yeah, but we don't have to because the park sites are there. So, if we split it evenly, like was on the application and each one is, I think 4.6 again, that's 0.4 acres on each of them that are lower than the five. Or, if you said no, you've got to have one that's five acre and one that's 4.2, we could do that, too. We can only get three.

Mr. Thillmann - Okay. No, I get it. So, when the property next door was rezoned to the planned development district.

Ms. Ratcliff – You mean the subdivisions, yeah.

Mr. Thillmann – Did they talk to you at all about incorporating and being part of the subdivision?

Ms. Ratcliff - No, because it's off of River Road. So that is what we have. No, I just did investigating work myself to find out how many lots were in the district, how, where had land perhaps been rezoned.

Mr. Thillmann - When it was zoned originally. Did they ever talk to you?

Ms. Ratcliff - No. No, no. And Barrington was rezoned, I think, in like 2018 or 2020.

Mr. Thillmann – Wasn't that long ago.

Ms. Ratcliff - No, I know that's what I'm saying. And I mean, so it seems like if you have a lot of land, I feel like, you know, I've lived in this county for almost 30 years in the same house, and I love it. And my kids love it. And I feel like, what a great thing that my kids want to be near me. But I've told them it's the best situation because I'm on one street and they're on another. I don't even have to know when they come home. But, but I have three kids. I don't have two.

Mr. Thillmann - Right. Okay. Um, so if we're going to defer decision tonight, and I guess we are, because we already made that decision, when you come back next time, would you bring us a show? Show us how you want to subdivide.

Ms. Ratcliff - Yes, sir. We can't do anything with the one that our house is on the 3.2. We're still paying on our house. So it, you know, the County had said we might could do a lot line adjustment. We reached out to the mortgage company, but then the County came back to us and said it's already considered non-conforming, you know, because a lot of these lots were probably put on the books before the River Overlay was created, so they wouldn't let ours go. So, we can't take any from ours.

Mr. Bramlette and Mr. Thillmann inquired if they could be added to the adjacent subdivision.

Ms. Ratcliff - I don't think that would work because our house that we live in is actually lot 19 in Mineral Springs forest.

Mr. Thillmann – Okay.

Ms. Ratcliff - Yeah. So that wouldn't work. So that it's strictly based on the fact that we own the nine and two and the five, which is 14.2. We're point, we're point acre shy. And if you look, you were talking about making a precedent or whatever, you know, there's only like eight people of all the lots that might own more than five, but less than 20. All of those are in subdivisions already. You know, so, and most covenants in a subdivision say you can't subdivide it further, you know, or whatever. And, but anywhere else in the County, a two-acre or a three-acre is for a family where for me, it's not because it says I must apply by the River Overlay. And initially when I was talking with Beth, I was like, well, but if I could get it rezoned and take the 14.2 and leave 50% as open space, that would still give me 7.1 or 7.2, and I could get three, two, eight over two acre lots, which is what the other subdivisions do when they got it rezoned to the PRR-2 or the PRR-3. But then Beth came back and told me that I couldn't do that because it still reads that even if they get it rezoned and they are, they still have to meet the density of 1 to 5. Okay. But then when I investigated further and found that they consider, I understand the open space because I could do open space. But when they account, there's five acres in Barrington that is recorded, 5.412 acres are zoned are dedicated to the streets to drive in the subdivision and go down. To me that that seems unfair to me because I don't have, I don't have that. I don't need that. I have mine, all state-maintained road.

Mr. Bramlette – The roads already there?

Ms. Ratcliff – Yeah, it's there.

Mr. Bramlette - Yeah. The object of that is that it is space that does not have buildings and sewer systems and so forth. So that's, you know, it doesn't matter if it's covered in grass or covered in blacktop, it's still open space that nothing is being built on. So that's the rationale for that, right?

Ms. Ratcliff - But when you go down and then you look and you see that the lots are one right after the other, and there are only two-acre lots. I don't see how having that, even though at the very beginning of the subdivision you might have five acres. How is it having two-acre lots that have the septic systems right there? How is that preventing water quality degradation when I'm only .8 acres shy of having five acres?

Mr Thillman - There's a Chesapeake Bay act in every jurisdiction in the Chesapeake Bay. Had to come up with a plan on how they were going to accommodate it. So that included Maryland, D.C., Virginia. Yes. And every jurisdiction came up with their own way of infiltrating water into the soil so it would get into the river, and cleaned up. This was one way Spotsylvania did it. So, now we have to live with the rules. The question is, does it make sense?

Ms. Ratcliff: I don't think it makes sense because I feel like it is discriminatory to me as a landowner, because I could meet a density of, I could meet an open space requirement and then get two acres, but I would be at one. I'd be at one house. 0.476 versus 1.5, 1.476 on each of my lots. And I just feel, I mean, of course I want you to vote in my favor, which I think you can. I'm not asking for a large variance. It seems like there should, every rule is made to be broken, if you will, or you could within a small percentage, you know, say it's okay.

Mr. Bramlette - The key is the hardship. And hopefully when you come back, you'll have a better statement about hardship.

Ms. Ratcliff - Well, I don't really see how I'm going to have another hardship. And that's the only other thing I don't understand is, if I don't if I don't have a shot to get it, then why when I turned in my application, then did, why am I even here? If I didn't meet any of those requirements, why did, why am I here?

There was discussion regarding why Ms. Ratcliff was even able to submit an application.

Mr. Bramlette: As you saw, we have the ability to make a decision which is not in accordance with code. Make a presentation to us, we'll listen. You know, we're open, obviously, we are open. We will give you a fair hearing.

Mr. Bell – Are there any more questions from the Board on this case? Hearing none, thank you, Ms. Ratcliff. So, we should close the public hearing.

Ms. Mann – You are continuing the hearing until August 19, 2025.

Mr. Bell – We are going to continue the hearing until August 19, 2025. Ms. Shealy, would you present the next case?

Ms. Shealy – The next case is A24-0002: Mary Theresa and Elbert Jay Ramsey request an appeal to the Zoning Administrator's notice of violation of Sec. 23-4.1.1 and 23-6.24.3 pursuant to Section 15.2-2311 of the Code of Virginia and Section 23-3.6.1(a) of the Spotsylvania County Zoning Ordinance. A notice of violation was issued for unlawfully operating a contractor's office and shop without a special use permit in the Rural (Ru) District. The property is approximately 6.66 acres and located at 13614 Black Meadow Road, Spotsylvania, VA 22553. Tax parcel 9-A-3B. Chancellor Voting District.

Ms. Shealy - Just to let you know, Scott Lamolinara is here tonight as the code enforcement officer for this case, in case you should have any questions regarding the violation given. Virginia Code 15.2-2309 gives the Board of Zoning Appeals the directive for the basis of their decision for approval or denial. That being said, the decision on such appeal shall be based on the Board's judgment of whether the administrative officer was correct. The determination of the administrative officer shall be presumed to be correct in order to do so. The Board shall consider the purpose and intent of any applicable ordinances, laws and regulations in making its decisions. So why was this notice of violation issued? A complaint was received that there was an apartment located in the detached, agricultural structure on the property. For the sake of full disclosure, a current Spotsylvania County employee made the complaint, but was not an employee of the County at the time of the complaint. The code enforcement officer was permitted to go into the structure by the owners of the property, the Ramsey's. They were very forthcoming with information regarding the business and the operation taking place on the property. The owners also stated that they would not use the apartment as a residence any longer. While in the shop portion of the structure, the code enforcement officer saw evidence that it was being used as a Contractor's Office and Shop, as there was storage of supplies for the business located in the loft above the apartment, materials for the maintenance and repair of trucks used for the business, and tools and such used for the business under the lean-to attached to the structure. There were multiple bales of straw in a meeting with the zoning manager and the code enforcement officer. The Ramsey's were told a special use permit is required in order to operate a Contractor's Office on the property. Um, the owners had a pre-application meeting with the County prior to filing an application for the special use permit, but did not actually file the application. They retained legal counsel and applied for the appeal we are hearing tonight. The definition of a Contractor's Office, of Contractors Offices and Shops means establishments for the installation and servicing of such items as air conditioners, electrical equipment, flooring, heating, painting, plumbing, roofing, tiling and ventilating, an establishment for the planting and maintenance of gardens, grounds and yards such as landscape contractors and lawn maintenance services. Um, this is actually a business that does hydroseeding, so it falls under that category. This aerial from the county GIS system is of the two properties that will be discussed this evening. So, let's take a minute to talk about what each property is. These properties were originally one property. So, we're talking about these two right here. It's going to be -620 and -614. And they were originally one property and that parcel was divided into two parcels. The property highlighted in blue, you can't tell too much, but this is blue, is 13620 Black Meadow Road. And it's where the home occupation that will be discussed was located when Michael Gentry, the previous owner, lived in the residence on the property. The

property highlighted in pink is 13614 Black Meadow Road and is where Greenway Hydroseeding, owned by Michael Gentry, is operating, currently without a permit. This is also where the complaint for having a non-permitted apartment was located. So, the apartment was in this structure here. Okay. The business located at 13614 Black Meadow Road, that was the pink one and on the previous slide is Greenway Hydroseeding. The owner is Michael Gentry, who is also the prior owner of the property. Mr. Gentry is now leasing the property from the Ramseys, who are the current owners, and that's Greenway Hydroseeding is leasing it, and anybody involved in that business. Michael Gentry was also the owner of 13620 Black Meadow Road, which is the location of the residence that was shown in blue on the previous screen. And that was prior to the Ramsey's buying the property. When Mr. Gentry was the owner of 13620, he obtained a home occupation permit that was approved for a home office only. The definition of a home occupation is low impact, home-based business activities for individuals within any dwelling, such as, but not limited to home office, artist space, home crafts, internet sales completely contained within a residential dwelling that chiefly serves as a place of residence, subject to development standards as established in Chapter 23, Division four, which are home occupations. Zoning Ordinance Section 23-5.4.2.1 states, "A home occupation shall be conducted within the dwelling, which is the bona fide residence of the principal practitioner or in an accessory building thereto, which is normally associated with a residential use." This section of the ordinance requires that the owner of the business live in the house. When Michael Gentry sold the house at 13620 Black Meadow Road, the home occupation was no longer permitted as he was not the bona fide resident of the property. The new owner could apply for a home occupation permit. The Ramsey's, who were the new owners, did not apply for any permits after they purchase the property, so there's no permits on that property right now. It also states that if the business is located in an accessory building on the property, it must be a building that would normally have a residential use, such as a shed or garage within an office. The structure that's being used for operating Greenway Hydroseeding is not a structure normally associated with a residential use. It was permitted as an agricultural structure before the house was built at 13620 Black Meadow Road. There has never been a permit obtained for this business to operate at this location. A special use permit would be required, again, for a Contractor's Office and Shops. So, what are the requirements for home occupation and could they be met today? The home occupation that was issued, so, home occupation shall be conducted within the dwelling, which is the bona fide residence of the principal practitioner, or in an accessory building thereto, which is normally associated with a residential use. No stock and trade shall be displayed or sold on the premises. There shall be no exterior evidence that a property is used in any other way than for a dwelling. No mechanical or electrical equipment shall be employed other than machinery, machinery, or equipment customarily found in the home associated with a hobby or avocation. No outside display of goods or outside storage of equipment or materials used in the home occupation shall be permitted. No employees, whether paid or not, for their services, except persons who use the dwelling as their bona fide residence, shall be involved in the home occupation on that property. No sign or other form of exterior indication or advertisement of the home occupation shall be permitted. There shall be no customers or clients accessing the location. No more than two service vehicles shall be parked on the property at any one time. Occupants of the residence may park their vehicles. Also, no retail or wholesale activity may be conducted on the property except by phone, mail, internet or other electronic medium. Other forms or transactions must be conducted offsite at a permitted location. So let me just look here for a minute. So, the home occupation that was issued again to Mr. Gentry for a home office

would have been in violation of the following requirements if Greenway Hydroseeding was being operated as it is now, the business is not being operated in the residence. The structure where it's being operated was permitted as an agricultural structure for agricultural use, not for residential use as required. There is exterior evidence that the property is being used for a commercial use, not residential. There is outside storage of straw and equipment. There is also truck traffic and employees entering and leaving the property during work hours. The equipment stored on the property is not customarily found in the home. There are employees, other than the residents of the property, operating equipment and vehicles for the business. There is currently more than two service vehicles at any one time on the property being used for the business, as observed by the zoning code enforcement officer. So let me now clear up the issues that were raised by the applicants and their application narrative, the County acceptance of taxes. The Ramsey's argue that the BZA should consider the fact that the County issued Greenway Hydroseeding a business license as the County's approval of the use of the property as a Contractor's Office, as opposed to a home occupation. The problem with this is that business licenses are issued by the office of the Commissioner of Revenue, which is a separate constitutional office, and that office does not reflect determinations by the Zoning Department. The Commissioner of Revenue bases its requirement for licensing on the number of gross receipts. That amount is currently \$2 million. If a business does not have \$2 million or more in gross receipts, then they receive an exempt business license, but they are still responsible for paying taxes on business tangible property. Again, the payment of those taxes does not determine the zoning use of the property, nor does it take the place of zoning permit for the business. Lack of county action at subdivision. The structure being used for the business on 13614 Black Meadow Drive was approved as an agricultural pole building in 2000. At the time of that approval, addresses 13614 and 13620 were one parcel. The structure was approved as the ordinance allows for agricultural structures being used for agricultural uses such as tractor storage for farming use or housing of agricultural animals on a property that has rural zoning. In that case, they would not be an accessory structure, but a primary structure for the primary use of agriculture. When the property was subdivided in 2010, the residence had already been built on the property in 2002, and the home occupation had been approved in 2003. The Zoning Office reviewed the application for subdivision to ensure that all structures would meet setbacks from the new property lines, and would have verified that the agricultural structure could be on its own property, as it was approved for agricultural use. There was no permit allowing Greenway Hydroseeding being on that property, and a home occupation was located in the residence only as a home office.

There was no request for the agricultural structure to be included as part of that home occupation permit. Again, it was a home office use only on the permit. That's how it was permitted. Lack of county action before now, that's another question that's being raised by the applicant. The Ramsey's also suggest that because the County has not caught the violation before now, the BZA should continue to allow them to violate the zoning laws. The problem with this argument is that it doesn't reflect or understand the County's enforcement model. The County enforces its zoning regulations on a complaint made basis. It is not proactive. The County does not have the staff to inspect every property every year to determine whether the owner is complying with the zoning regulations. That type of system would cost a great deal of money and result in higher taxes to cover the costs, or much higher fees for the permits. The County investigates complaints and in the course of that investigation, looks for any other violations on that property. In this case, while

investigating the complaint of a non-permitted apartment, it was very apparent that there was a business operating. After further research of the complaint, the code enforcement officer noted that there was no permit for a business on the property. The fact that Greenway Hydroseeding has violated zoning regulations for years does not justify it continuing to violate the zoning regulations in the future. It would be like being caught speeding. Um, not being caught speeding for 20 years and saying that because you hadn't been caught, you can continue speeding. The Gentry's and Ramsey's had just not been caught until now. The Gentry's and Ramsey's were not on notice of violation. The Gentry's had the permit granting only home occupation. The Ramsey's had a duty to conduct a due diligence investigation before buying the properties, which should and could have included calling the zoning office for confirmation of legal business and or asking for zoning determination of whether the business complied with zoning. The Ramsey's and Gentry's cannot fail to meet their obligations and then blame the County for their failure. And I will tell you that we get a lot of phone calls from people asking if their use is permitted on a property before purchase. That's a common occurrence. And we also do confirmation letters frequently to let people know if a use is permitted or not. The County's numerous approvals and affirmations of lawfulness. The County provides approval and affirmation in the form of a zoning determination letter, which is authorized under Virginia law as the way the county determines that a use is lawful. Neither the Gentry's nor the Ramsey's ever, ever requested a zoning determination letter. Now they're arguing that because the County did not let them know some other way that the use violated zoning regulations, they should be allowed to continue to violate the code. That argument is incorrect. In conclusion, staff recommends denial of this appeal as there are no active permits for a commercial use on the property at 13614 Black Meadow Road. There has not been a home occupation permit at the residential property, 13620 Black Meadow Road, since the property was purchased by the Ramsey's in 2022, and they are now the bona fide residents of the property. While the appellants may argue that the Gentry's had a home occupation permit and it should be allowed to continue, they were operating the Greenway hydroseeding in violation of that permit that they had for a home occupation, and the development standards and use requirements. The structure, located on 13614 Black Meadow Road, only has a building permit for an agricultural structure. There has never been a use permit of any kind for this property. The notice of violation for failure to obtain permits and approval for a special use permit for Contractor's Office and Shops was correctly issued, and the Spotsylvania County Zoning Ordinance supports this. There are currently no permits for the operation of any business on the property. Therefore, a special use permit for a Contractor's Office and Shop is correct, and that is grounds for denial by the Board of Zoning Appeals. So, in conclusion, staff recommends denial of this. Oh, I'm sorry. I already did that one. I went back. Um, so the Virginia State Code relies on the Board of Zoning Appeals judgment as to whether the administrative officer was correct. The Board must also consider the purpose and intent of the applicable ordinances, laws and regulations. In making its decision, the Zoning Code Enforcement Officer issued a Notice of Violation of Zoning Ordinance, Section 23-4.1.1, in the definition section and section 23-6.24.3, which lists permitted special uses required. The officer was correct in his issuance of a notice of violation for this property. There are no permits on this property for a business to be operated, and a special use permit for a Contractor's Office and Shops would remedy the violation. Approval of this appeal would usurp the Board of Supervisors authority to approve or deny the application for a special use permit, and to set conditions of approval for the property. This is actually a very simple case. The only permit for a business issued on either of these properties was a home occupation on the residential property.

Mr. Bramlette - The last, the last sentence there, and your last statement, is there an application before the Board of Supervisors?

Ms. Shealy - No, sir. They, the Ramsey's, came in for a special use pre-application, which we hold a technical review committee meeting every week. And prior to somebody actually applying for the special use permit, they can come in and talk to the technical review committee. That was done. But then after that, the Ramsey's did not file the special use permit, but they did get legal counsel in order to go through this appeal process.

Mr. Thillmann - So can I follow up on that?

Ms. Shealy – Yes.

Mr. Thillmann - Were there conditions that the staff recommended to the Ramsey's at the time that the Ramsey's thought they couldn't meet?

Ms. Shealy - So in the pre-app meeting, we would go through what was required as part of the development for a business on that property. So, it could have been things like number of parking spaces provided, um, any paving that would need to be required, anything of that nature. It would even also involve like if fire and rescue could get through, you know, with tree coverage as it is, things like that. So that was discussed as part of what would need to be done just for developing the property.

Mr. Bell - During that discussion, was there any discussion about the relative cost of a special use permit like that?

Ms. Shealy - I would assume that they would know, the cost of a special use permit.

Mr. Bell - Thank you. Um, you had mentioned that the Ramsey's applied for it or didn't apply for a permit? Um, would it that's the current owners. Would it make sense for them to do so?

Ms. Shealy - In order to run that business? They would. The County requires them to have a permit.

Mr. Bell - The Ramsey's or the Gentry's?

Ms. Shealy - The Ramsey's, because they are the current owners, so it falls on them. So in order for that business to operate there, they would need a permit and that would have to begin with a special use permit issued by the Board of Supervisors.

Ms. Robinson - Do you know if this business was currently in Spotsylvania prior to being at this address?

Ms. Shealy - Yes. It was. It was actually I believe it was 13615. I believe it was actually, as far as I know, it was on Black Meadow Road. But I believe that that was also, um, a home occupation or home enterprise. I believe it was in your packets. All the permits were there. So, it was permitted at one time on a different property. And then it was moved. My understanding is that when they purchased the properties, the -614 and -620 properties, it was moved to that agricultural structure.

Ms. Robinson - So you have to have a new permit every time you move to a different property

Ms. Shealy - Yes, it goes with the property.

Ms. Robinson – Thank you.

Mr. Bramlette - So if Gentry moves from that piece of property, then this thing is this whole issue is dead.

Ms. Shealy - So the hydroseeding business is there and, if the hydroseeding business moves off of the property, then it's dead. Uh, my understanding is that Mr. Gentry is part of that Greenway Hydroseeding company. Um, but he's no longer an owner. So even if they go forward, if the Ramsey's go forward with a special use permit, that is for a contractor's office. So that would allow that property, whoever have to operate a contractor's office. If it was Greenway Hydroseeding or landscaping services, they could, you know, still operate that as Contractor's Office. It's not specifically for that business. It's for a Contractor's Office.

Mr. Brown – so question, without the special use permit, the Ramsey's are no longer able to operate on that property or is there a timeline if they submit the application for the permit, um that they could continue to operate.

Ms. Shealy - So I will say that with the violation, we have extended that time frame, I believe several times, several times, um, in order for them to pursue a special use permit. But they did not go forward with that. Um, I believe that instead, they're coming to you to allow them to continue to operate without a permit is essentially what it is.

Mr. Brown – Thank you.

Mr. Scott Lamolinara was introduced to the Board of Zoning Appeals.

Mr. Leming - Good evening, Mr. Chairman, and members of the Board Of Zoning Appeals. I'm Clark Leming. I'm here on behalf of the applicant. Um, you guys have been sitting there a long time and you already know I'm a bit long winded. I don't know whether you want to break, but, um, we do have a completely different story to tell you. And yes, this is a simple case, and we're going to explain to you why virtually everything the zoning administrator has shared with you is simply incorrect in these circumstances. Now, before I, if you if you want to go on what I do want

to do and understand, I know that you're going to give me a fair hearing and but we do have a record here. And so, I do want to establish a, a couple of things before I get started for the record. And then I have some handouts for you. And so, we'll just see. I was hoping you'd take a break and then I can get organized better. All right, here are the, here are the things that I do want to point out. And it goes back to our prior discussion. And I know you've already voted. You're going to hold this over. Um, I did look through your bylaws and through State Code. Um, I do not see specific authority for that in either location. Now, I'm not going to stand here and tell you that under no circumstances you can do it. Uh, certainly as of 4:00 this afternoon, I assume we would have a hearing and a decision tonight. So, I haven't given this, uh, a whole lot of thought. But there are some reasons why I think this may be the case. You heard about, uh, several sections of state code tonight. Another provision, uh, procedure on appeal. This is Virginia Code Section -2312 and it actually goes through the things that you, uh, that you can do, uh, with anything that comes to you on appeal. This is an appeal of a zoning violation. And specifically, what it says is that you may reverse or affirm wholly or partly may modify in order, requirement, decision or determination appealed from does anything about continuing public hearings or putting something off. And probably the reason for that is because the BZA, strictly speaking, under Virginia law, is to make a decision within 90 days of the filing of the application. Now, that didn't happen here, partly because of me. And, um, by the time we initially talked about this, I was simply unavailable. I'll tell you a little, just a little bit about me. I've been doing what I do for about 40 years, and I've appeared before Boards of Zoning Appeals in, I believe, at last count, eight different counties. And I've had the pleasure of being before the Spotsylvania. A number of times in the in the past, over the past couple of decades. So, um, 90 days. I ask for a continuance. No question. At the April meeting. Now, what does that do to the 90 days? Well, I certainly can't come to you and say, oh, well, you put me off till June. Violation by 90 days. Now, what happened then? There was not a quorum, so there wasn't a hearing, and it was put off until today. Are you still within the 90 days? Arguably with the request for continuances? I don't know, but I think that's probably why you don't have something in your bylaws or under State law saying you can put these things off because you've got that 90-day requirement now. Um, I think that's all that I wanted to get on the record here. Um, it is, it continues to might be my position. The County Attorney is not a, uh, a representative of the Board of Supervisors who can speak at these proceedings, the Board of Supervisors. That's because they're not a party. The Board of Supervisors can advise staff. There was a question that came up about you're all seeking counsel. Yes, you can. But very clearly under Virginia ethical decisions and Virginia law, that's got to be an outside counsel. The County Attorney cannot give the BZAs of Virginia legal advice. Why? Because you're a quasi-independent judicial body, and the Board of Supervisors had specific interests that you are weighing in on. So that is verboten. And I will tell you, just a few months ago, I had a case in King George County before their BZA, and they had to call in their own attorney to advise them on the merits or lack of merits of the application. We worked it all out, but they had their own counsel, and that's the way it has to be done. My partner and wife, I don't know if Mr. Bramlett remembers this, but she was on Stafford County's Board of Zoning Appeals for a number of years until she went on the school board. All right. Now, let's talk about the substance of this case. And enough about process and procedure. First thing I would like to do, and I'm trying to save everybody some time here. I have a number of, uh, exhibits that we're going to talk about, and I have a set for each of you. And I do this. You know, I'm an old lawyer. I don't do video presentations, but I have some paper for you. All right. And so, I have, uh, eight sets of mine, and one of these is for you to have. Now,

just so everybody will understand, those of you who were here in March will recall that I ask that this be put off, because there were five of you there that night, which meant that if I were going to prevail, I had to have 4 or 5. Okay, well, there's still not a full BZA here. And I complained loudly about the new members. And you're permitted to have alternate members to the Board of Supervisors, of course, has to appoint those. But six of you are here tonight And mathematically, it doesn't matter anymore. Because whichever, if you went for votes one way or another, that one additional member wouldn't matter, wouldn't affect the outcome. So that's why I'm not up here jumping up and down about that now. With me tonight are Mr. and Miss Ramsey and you heard a lot about the Ramsey's. Uh, seated next to them are the Lathams. Now, Mrs. Latham is Mr. Gentry's daughter, and Mr. Latham is his son-in-law. And they operate hydroseeding. The hydroseeding business right now and have for a number of years. In fact, I think I think Mr. Latham's been involved in the business for probably almost three decades. Okay. He was a partner with Mr. Gentry. Now, a good bit of incorrect information. So let me see what I can do to correct some information. The Ramsey's purchased both parcels in, uh, 2022. Um. They are. They were residents until then of Wardensville, West Virginia, where Mrs. Ramsey worked for the Mayor's Office. I guess what she did in the Mayor's Office, one of the things she did, she serviced the Board of Zoning Appeals. So, she knows a little bit about this. Now, they came here and found their retiring, wanted to retire in Spotsylvania County and found what they thought was the perfect setup, a house to live in with an existing business going on next door. Uh, that would provide them with rental income to supplement their retirement. So that's how they got into it. And they did all the title work. You know, believe it or not, most people don't think when they come upon something like that, if there's nothing in the land records, they don't think, oh, we better call the County and be sure this business that at that point had been going on for three decades, that there was something unlawful about that business. Why would they? It was. Their ongoing had been ongoing. Mr. Gentry was still around, um, and he is still. And we'll hear some about him in just a moment. Now, to the staff's credit, when this came up, they took care of the issue on the advertisement of the apartment. It was already set up. There was somebody staying there when they purchased the property. Well, they assumed there was no issue with that either. But as soon as they found out there was an issue, they fixed it. So, I mean, they're not, you know, trying to hold out here and hold open the possibility that, you know, they can prevail or that they're right and nobody else knows anything about this. They cooperate where they can. So why didn't they do what Miss Shealy said? Well, to their credit, the staff's credit, they did sit down with the Ramsey's and talk about the special use permit. So, the Ramsey's check that out. So, uh, filing fee, about \$6,000, now we're talking about a new use here. Uh, engineering, about \$30,000. They check with some engineering companies that prepare a GDP. Um, and the whole thing has to be re-engineered. It's not like you just, there it is, get your special use permit, and off you go. No. Uh. And it gets worse. I told them how I told you about \$10,000 in legal expenses if we went that way. I'm in the wrong profession. Engineers make all the money, not the lawyers, believe it or not. But then the construction part of it. Why? Because they're tripping the ordinances that exist today. A new parking lot. Construction estimates they got \$70,000 of commercial entrance, \$20,000. So they were not enthusiastic, nor did they think it would be possible for them to cover those kinds of expenses to do what the County said they needed to do. So now, that was when I got involved in the case. I'd had no involvement with that and we started looking into it now. Um, when the county's position on this is varied somewhat, first they said, well, this 2010 subdivision you've heard about and we're going to talk about more that at that point in time. They lost their, uh,

accessory use argument or whatever. But the County backed off of that and now just says, you know, it's got to be, uh, an sup and that it's a Contractor's Office. You know what? The ordinance hasn't changed over the past 20 years. We're going to go back and talk about why that's significant here. Now, the addresses are a bit confusing. Um, in two in the when this was started on these parcels, there was only one address. It's the address of the hydroseed business, now, 13614. The second address doesn't even come into play until the old, a subdivision of the parcels, and then that became 13620 in 2010. So, it was all part of one address originally. Now, let me go through a bit of the history and the first thing that I'm going to do, because the Ramseys don't, are, aren't part of this history. You know, they came into the scene very belatedly in 2022, but are having to bear the effect of the way the County is viewing this now. Now, Mr. Gentry, uh, conducted the business. Miss Shealy was right, another location on the same road on Black Marsh, and it was. There was a house and a business on the same property. He then purchased these parcels, and the first thing he did was to apply for a building permit to build the building that now houses the business on his new two parcels and he built it and he then moved the business there. Lock, stock and barrel moved it right over to the new parcel and started operating in 2001. Now I have the first exhibit that I gave you was is an affidavit from Mr. Gentry. Now, Mr. Gentry could not be here himself. I don't think his health is particularly well, but he did, uh, swear out an affidavit here, and he talks about the background that I'm sharing with you here. Um, so, and he tells you where he lives now. So, from 2004, 2022, he lived at the house that's now on the premises, but the house came later after the building that houses the business. Um, now he obtained in 2003. We're going to look at these documents. He obtained a zoning use permit. That was what we needed to do. We're going to look at that and talk about the significance of it. And prior to 2001, he operated on another, um, address on, uh, on Black Meadow. I think I mispronounced that previously, and then we have the 2010 subdivision he goes through, we're going to go through all of these documents. And so thereafter, after 2010, he owned both parcels and continued to live in the house and operate the business. Now, at no time did he operate the hydroseeding business or any part of it from his house. It was always done in the building that he built in 2001 and moved his business to. Never changed. Never operated out of the house. The house came later. Okay. Now, that was the only use permit that he got. It's never been. Nobody's ever retracted it. Uh, and I'll tell you why. It's why it's significant as we go through this. Uh, and nothing has changed about the business to the present day. And, of course, we're on appeal now. The first document after the affidavit from Mr. Gentry is the building permit, the 2000 building permit for this what's called a pole building, which is what it is, describes how it was built. And from its very outset, it has housed the hydroseeding business. That business was moved there as soon as the building was up, according to his affidavit in 2001. All right. So that's what it was. Now it says, and we'll probably point, oh, well, it says agricultural uses, but it's not agricultural uses. You know, it's some kind of contracting. Well, you know what, in those days, you know, you used you seeding work. It wasn't all done automatically. You used a disk, you seeded pastures. So, I mean, there certainly was an agricultural argument. And what was stored in the building was seed and straw, you know, for the business. So, you know, I understand, uh, the way they're interpreting the ordinance today, but this was 25 years ago that we're talking about. And, um, and, and the whole home occupation argument has been made here. The ordinance changed dramatically in 2015. Now, there was a contractor's office definition back then, but nobody ever brought it to anybody's attention. Now, the next thing that happened is in 2003, and that's the next document that I have. And on this one, Mr., and this is, this is an ambiguous document, and Miss Shealy will say, well, look at this and I'm going to say, look at this. Now

what? It says that nobody's hiding anything. Here's what it's going to be used for, the Greenway. Hydroseeding. Hydroseeding. Okay. Straw mulching for erosion purposes. Okay. Establishing grass. So that's what they said they're going to do. Okay. Now down at the bottom it says zoning. Okay. For home office only. Well, Mr. Gentry thought he had a zoning use permit to do what he was already doing. Okay. And proceeded accordingly. Now, what I would emphasize about this is that nothing was nothing was held back. And most importantly, at the time that this zoning use permit was issued, there was only one building on the property. The building that then had the Hydroseeding company and continues to have the Hydroseeding company. There was no house. There was no place for a home occupation. I also would point out that what it says here, and you may say, oh, well, that's just a misnomer. It says Home Office. Well, there is no definition of Home Office under the zoning ordinance then, or I believe, even now. So maybe they meant home occupation. And you've heard a lot of regulations about what a home occupation is. But none of that was clear back then. And this doesn't say home occupation. As you all can appreciate more than most, every term like this is specifically defined in the ordinance. There's a list of definitions that goes on for pages and pages and pages and pages. Home office is not there. All right. So, um. So, Mr. Gentry proceeded. Of course, the business is continuing throughout all of this. He's now over ten years. He's ten years into his business. Now, he did build a house on the same parcel. Uh, I believe his affidavit indicates that sometime later in 2004, that the house was constructed. I don't know exactly when they moved in there, but that there was a house on the same parcel. Now they all had the same address. There's 13614, that was the address for both the office and the house. It was all one parcel. And nothing about those changes changed until we get to 2010. And I'm just I'm just going through some facts right now. We'll get back to the significance of these later in 2010. Mr. Gentry, as he says in his affidavit for personal and estate reasons, he subdivided. He did. He did a family subdivision and he divided these two parcels. And there's a plat That is the next exhibit. It was approved by the county by the now, I think Deputy County Administrator, Wanda Parish, for family subdivision. I think this signifies that it's compliant with Spotsylvania Ordinance. And what does the plat show? It shows very clearly that there are two buildings at issue here. There's, and this is very hard to read, uh, you probably can use a magnifying glass, but the parcel that is shown on this parcel 38, the building shown on that does say pole building. And we think those are the dimensions at the top, but it does say pole building. And then on the other parcel the, the house says dwelling. So, there's no question that the dwelling, excuse me, got the dwelling on one parcel. Am I talking too close to the mic? Uh, you got the dwelling. You got the dwelling on one parcel and the business on another parcel. And there they are, spelled out in black and white. Now, if there were something incorrect about this, about the arrangement, about the configuration of the parcels, if it's subdivided, is it an accessory use still? Don't know. But nothing, nothing was brought to Mr. Gentry's attention. And so, he just did his family subdivision and moved on with what he was doing for another 12 years in that exact place. And exactly the same thing. Now, now, you heard a little bit about, um, about these, uh, business licenses. And I'm going to explain to you why there are a whole lot more significant than Miss Shealy has indicated, now, every single year of the business, Uh, Mr. Gentry and the Latham's after him, have obtained their business license from the county until the threshold was dropped. And. And then what Miss Shealy said is correct. Now, I had them go back in their records, many of these business licenses, and I've attached them. I'm going to explain to you why they're significant. So, since 2009, I believe, all the way through 2022, year after year after year after year, they obtained their business license, which from their standpoint, they understood as a license to do the business, which is what most

lay people would think. Now we know that it's mainly a way for the County to raise money and that Zoning and the Commissioner of the Revenue were are different. But I'm going to connect the two for you in a minute. But the important thing right now is that they did that year after year after year after year after year. Now what? What is the significance of this? Well, let's talk about the County's argument for just a moment. The County says that they needed SUP for a Contractor's License and Shop. Now, that was there in 2003, you know, when this thing was set up. Even under the 2003 permit, nobody said anything about a Contractor's Office. You know, maybe they approved it for this, whatever this home office is. But nothing was said about a Contractor's Office. Now, that's when it was set up. And that's when Mr. Gentry got the zoning use permit. Whatever, whatever that was. He didn't hide anything. Uh, and he went on. Now, the reason that this is significant. Um. I'm looking and this is the next exhibit that you have. I'm looking at your ordinance. Spotsylvania ordinance section 23-4.1.3.3., use more decimals in Spotsylvania zoning ordinance than any other ordinance I'm familiar with. Okay, but look at what it says. It says under be prior to the issuance of a zoning permit, we have to worry about occupancy permit. The code compliance department shall conduct an on-site inspection of the premises to determine if the uses and structure and occupation of the site comply with all the requirements of the chapter and any specifications, plans, conditions, site plan approval. Now Miss Shealy was telling you about definitions of home occupation that came into being in 2015. This portion of the ordinance has been there according to the code since 1995. So, it was there in 2003 when the zoning use permit was issued. Now, if somebody had come out or somebody did come out, would they have seen when that permit was issued, they wouldn't have seen a house. It wasn't there. They would have seen a building and a business. That was it. Okay. So, whether they did the inspection or not, I don't know. They were compelled to do it. And if they had, it would have revealed why. What Miss Shealy now says was the case was simply not true back then. Somebody either missed it or looked at it and said, looks good to me. And on they go. But they're required to make that determination under your ordinance now. And your ordinance then. And they either did and they're wrong. And all this time has lapsed or they didn't do it. Same result, I think. So, now, the question that all that poses, this contractor's office, when should the County have imposed it? It was back there then the ordinance in 2003. No, nobody said anything about that when they made their application for a zoning use permit. Nobody said anything about that when the inspection occurred or should have occurred. So off went Mr. Gentry and his partner, Mr. Latham, and proceeded with the bids because they had no way of knowing there was anything wrong at that point. Now then, we have the 2010 family subdivision. Now, why is that significant here? And what we have is opportunity for the County to look at this configuration and say, oh, wait a minute. Okay. What's the, we got a business there. It's there on the plat. Uh, is there anything wrong with this now? I mean, do we have the permits? I mean, but the then I believe, uh, Director of Planning signed off on the plan. It's fine. Complies with the ordinance. Okay. Now attendant to both of these things, both the application of the ordinance section we talked about, and for approval on a subdivision plat, there's an analysis that's required. Is the applicant complying with the ordinance? It's a zoning determination that has to be made at those steps. You know, this is not a question of, oh, well, why didn't they know about it with those interactions with the County? Why didn't the County know about it or raise the question? They didn't. We're going to talk about why that's significant. Um, now the nothing changed until the Ramseys bought the property and there was the inspection, which was incidentally brought about because Mrs. Ramsay, who thought she had a right to rent the apartment, was advertising online and somebody reported it. The County came out to check,

otherwise, we wouldn't all be here today. But you know that that's not an issue anymore now. So going back through the through the history, trying to figure out what the what the law is here that governs this now. What I would, what I want to do is to explain to you how all these things fit together now. Now, first, back to the business license for a moment. Here's a license. If you go to legal dictionary, a license is a permit from an authority. This is from Oxford Dictionary, US law. I've got two, a permit from an authority to own or use something, do a particular thing, or carry on a trade, a permit, I've got a business license. What does a layperson think about that? Good to go. US law. Um, permission. Permit permission granted by a qualified authority, permitting a licensee to do something that would otherwise be prohibited. They got a license there. Okay. That's what laypeople think. Okay. Now. Now I want to talk. I want to try to pull these things together. Now for you a bit. Um, first, the narrowest issue before you are whether the notice of violation, the notice of violation is correct, that they need this special use permit, that they're in violation of the portion of the ordinance that was quoted to you. Well, you know what? The County had at least two. And I'm going to argue even more than that, opportunities to make that determination to decide this is a Contractor's Office. In 2003, when the use permit was issued, in 2010, when the subdivision plan was approved. And I'm going to tell you and I'm going to tell you why in a moment. Each and every time a business license was issued, there's a zoning component to it that I'm going to explain to you now. So multiple times so is the zoning. Is the violation correct? You know, maybe back in 2003, if they had said that, but they didn't. So what? Again, what does the layperson what did Mr. Gentry learn from that? Good to go. You know, he didn't know anything about Contractors Offices. He's just trying to do what somebody tells him to do. And he comes down to the county and they give him a form to fill out, and he says, here's what I'm doing and they give him his own use permit. And here we are. 22 years later. Now, now, the reason that all of these things are important is that there is a section, Virginia law, and I, I give this to you as well because I suspect you probably have access to it. But Virginia code section 15.2-2311C and that is a very commonly used portion of Virginia law, particularly by landowners, because this is what it provides for in no event shall a written order requirement, decision or determination. Very broad and written only applies to the written order. And if you go back earlier in the statute, you'll see why that's the case. So they didn't even have to be in writing, but we have writings here. Anyway, determination made by the Zoning Administrator or other administrative official, any officer, any administrative officer in the interpretation of the zoning orders, any business having to do with zoning ordinance, um, it shall be subject to change, modification, reversal by any Zoning Administrator or other administrative officer after it can't be changed after 60 days have lapsed from the date of the determination, whatever it was. Now, the other component of that, which is sort of a vesting test, but it's narrower than the vesting statute, which some of you may be familiar with, but what it says is that the recipient, the beneficiary of that determination, had to rely on it in good faith. You better believe that Mr. Gentry relied on what he got from the County in good faith, and went on conducting his business. He's a lawful man. He applied every single year for his business license, you know, paid the county that money. He's not trying to get out of anything. He didn't hold anything back when he filled out the 2003 permit application, did what somebody told him to do and said what he was doing. All right. So that the only way you get around that is if the determination was obtained through malfeasance of the Zoning Administrator or other administrative officer through fraud, don't have any of that here. So, what do we have? We have a 2003 zoning use permit that was issued to Mr. Gentry, and that he relied on and used to continue his business, now, and the County was required to go out there and look. And they did or they

didn't. Who knows? I don't think it matters. Nobody changed or asked anything changed. And Mr. Gentry relied on all of that. So, it's over. It can't be changed. That zoning use permit, you know that, that continues. Um, you know, there's been nothing that would happen that would revoke it, okay, for his hydroseeding business. All right. Now, then we get to 2010, in the subdivision. And once again, you have the County Planning Director approving that subdivision that shows two parcels, a building on each parcel. One is a, it's called a pole building, ok, and the other is a dwelling, okay, the pole building can't exist by itself, not according, not according to your Zoning Administrator. You got to have a, you got to have that sup. Okay, well, there was no business ever conducted out of the house. There was never any home office, home occupation, whatever that term means in 2003. Now I'm going to, I'm going to go one better than that. The business license connection says, oh, well, that's the Commissioner of Revenue. Let me ask you this. How many residents of Spotsylvania County do you think look at the County government and think, oh, the Commissioner of Revenue or the, oh, yeah, they're independent constitutional officers. They don't have anything to do with Planning and Zoning. That's what, that's what the Zoning Administrator tells you. They're different. How many people you think understand that? It's all it's all Spotsylvania County. So, you know now. But even more important than that, the last thing I included for you, this is this is on the county web page. And I pulled it off. And this is, you know, for those people who want to know, how do I obtain a business license? And it tells you what to do and what you got to have, and you know what number one is on the list. And approved zoning use permit must be issued. So, there is a connection. The Commissioner of Revenue is not authorized to issue a business license unless there's a zoning use permit. Now that's the connection between that independent constitutional officer. The Commissioner of Revenue and Planning and Zoning. Now, Miss Williams asked for that every year. I don't know, but this is, that's what you got to have. Mr. Gentry had one. Nobody ever questioned it. Okay. So, year after year after year after year, he applied for and obtained his business license. So, I add that to the section 2311 argument that that is another zoning determination, the absence of one was the County's job to check it out. If they didn't, shame on them. But year after year after year. So what? What do you think that what does that do to the perception of the recipient of those business license? Well, of course, and we talked about that, um, I'm good to go. I got my business license. Let's me do this. And the business license says you're right, on its face, hydroseeding. No secrets here. That's what they're doing. Contractor's office. Nothing. Doesn't appear anywhere except in the staff report and in the notice of violation. Nowhere else in the history of this business enterprise has that word ever come up, even though it was in the ordinance in 2003 and 2010 and consistently since that period of time? Now it comes up. Now my position, I also want to be sure and bring to your attention that there are attached to your exhibits there, there are eight letters from the, um, neighbors and nearby residents saying what a great business this is, how long it's been going on. you know. Is it private enterprise? They don't bother anybody. They don't disturb anybody. They're very polite. They help their neighbors. Um, you know, nobody has ever, that we know about, complained about this business on this property. Okay? Somebody complained about the room that was going to be rented that was in this building, but that's it. All right. Now, I believe those are the, um, the main points that I want to, um, that I wanted to present to you. What am I, what am I asking you to do? You know, the way the way the Zoning Manager said, oh, let them continue with this illegal activity that they have to have a special use permit for, and they've been speeding along the highway for all of these years getting away with it. You know what? Dastardly people, of course, the implication is they knew they were doing wrong and they did it anyway. They didn't.

They didn't because they got approvals and thumbs up from the county at every step of the way. Nobody ever raised a problem, even though there were numerous interactions with the county. So, what I'm asking you to do is to find two things. Number one, that the notice of violation is incorrect. They were not required. They're not required now to get that, that special use permit, because that train has left the station. And it's not a case of their continuing to speed. It's a case of the County continuing to miss it, miss it, miss it, miss it, miss it. Opportunity after opportunity after opportunity. And there were any number of mechanisms in place where it could have been caught and corrected years ago before they dragged the Ramsey's into this. And the Ramsey's now have to deal with this. What I think was about a \$200,000 problem, if they're going to continue their retirement plan, which they can't. So, I'm going to ask you to find that the notice of violation was incorrect. But the County has lost its authority to find that violation today. Number one and number two, and these two are connected under the code section. We talked about 15.2-2311 subsection C. It specifically gives you or anybody a court any enforcing authority, the ability to say, wait a minute. There was a whole slew of zoning determinations here. Every time somebody goes to the zoning ordinance or should have gone to the zoning ordinance, had a mandate to do so, like the ordinance section we talked about. Go look at the place. Every time they do that, there's an interpretation involved there of the zoning ordinance, implicit interpretation. Uh, and, and that is all this statute requires. And very clearly the Gentry's and now the Ramsey's have relied on that and good faith. Nobody out there trying to pull the wool over anybody's eyes, just people trying to conduct a business and enjoy their retirement home and the rental property next door.

Um, so that's what I'm asking you to do now. I'm happy to answer any questions. Um, if you have any questions about the history, um, the Latham's are here, and they go all the way back to the days that we've been talking about. So, I mean, they can, they may be able to clarify something that I haven't been particularly clear on, all the Ramsey's know, is they got a big mess and they didn't make it. And the resolution, the solution, it sounds like sounds like the best thing in the world. Oh, just go get your SUP. You know what? With zoning the way it is today, how many regular people do you think can afford to zone their properties or obtain special use permits with the requirements that the localities have that require engineers, lawyers, and major, major improvements? Because you know what? It's a new, it's a new development. So, you don't get to go back, you know, to whatever it was 30 years ago. You know, you got to deal with what the ordinance requires now.

Okay. All right. Thank you for your patience. I know it's been a very long evening for you, and I'm happy to answer any questions. Or as I indicated, the Latham's may have the ability to.

Mr. Bell – Well, thank you sir. I believe we do have some questions, or at least one question.

Mr. Leming - And I'll do what I can to answer them.

Mr. Bramlette - Sir, I hate to keep you wound up and so forth, because I've been in your meetings before, as you know. Um, I would like for you to go back to the statements that you made about the 1995 original agreement as the law. Not, not they weren't involved in 2000 until 2003, but in 1995, you stated that there was a set for this type of situation.

Mr. Leming - There was a set. Well, I'm not. Well, I'll back up. I'm not sure exactly what you mean, Mr. Bramlett, but the business was established on another parcel in 1993, and it was all

done as Mr. Gentry wanted to do on this parcel house and the business on the same property. And they had, at least as far as we know, and maybe the Lathams, maybe Mr. Latham can fill this in. They had all their, I don't know when Spotsylvania first adopted their business license, but whenever it did, they started getting one. But they conducted the business on that property. Now, did they actually have some kind of zoning use permit? Do you know?

Speaker from audience - I believe they did. It was in 1993 when they first obtained the business license.

Unknown speaker - And so, in 1993, when they moved into this whole building on the property that they then established a business. as defined in 2003, not as we understand it today.

Mr. Leming - Yes, sir. I think that's yes, I think I, I think what you're saying is absolutely correct. Yes. The business was established in 2003. Now I can't tell you, and we're just operating on recollections here. The old property on Black Marks. Where is it? Black Mark or Black? Black Meadow. Sorry. I want to go to the marsh rather than the meadow. Um, but back in 1993, I'm not sure we can tell you definitively or whether the County has any record. We've done, we did a massive FOIA looking for whether there was some kind of license, uh, or zoning use permit that was issued then. So, what we do know about is what happened starting in 2000 and Mr. Gentry purchased this other parcel and got his building permit and built the whole building. And you've seen the, then the application. He goes to get a zoning use permit. The application right on his face says for the hydroseeding business, which has then been in existence for ten years in Spotsylvania County, there shouldn't be too much issue about that.

So, he does that. And notwithstanding what it what it says about office use, whatever that means, um, it's not part of the ordinance, but whatever, whatever the intent there was, there was no house. There was no house in which to have what is now defined as a home occupation. Big, big ordinance change. In 2015, the Miss Shealy was reading from, I don't know what it said back then, but he went ahead. He thought he had the authority proceeded with the business in 2003, in the pole building, and then finished his house and moved in next door and incidentally, the other parcel that was subdivided. He just talked about one subdivision, the parcel, that is, is it to the east or the west of the whole building? Earl's parcel. Is it east? I think, we think to the east of the pole building that was subdivided for the for the Latham's for them to live there. Okay. So that's that. And you all still, still live there. They, they've moved now. But that was originally set up for them to be next to the business next door to. So, family business, uh, the in-laws involved. And they did everything that they thought they needed to do.

Mr. Bramlette - So you were very specific about being at the bottom of the page that the permit in 2003 was for an office use?

Mr. Leming - No, there's no question. And it says that. And that's why I say it's an, it's a, it's a somewhat ambiguous document. No question it's a zoning use permit. But the issue at the top, it says exactly what it is. And if we were to comply with the ordinance that Miss Shealy has been talking about, it couldn't have been done in that building. There would have had to have been a home. There was no home when it was issued.

Mr. Bell - Are you referring to 2003 that there was no home in 2003?

Mr. Leming - That's correct. Yes, sir. There was no home. There was no home until I think he moved in 2004. It was after the, the, the after the building was there. Yeah. And that's I think he tells you that in his affidavit that he moved into the home later. But if the County had done its investigation with regard to the zoning use permit, which they were required to do by the ordinance, they would have seen no home. Here's where the business is. Nobody lives there. That's where the hydroseeding business is. So well, is that legal? Is that authorized under the ordinance? But nobody, either somebody looked and said it's okay, or nobody looked, even though they were obligated to do that before they issued the zoning permit. So that, that I think, is that I think is the argument. And we don't have a piece of paper that says, oh, you can have this business in this building, you know, from this time, and here's your zoning use permit. You know, but what we do have is a zoning use permit that Mr. Gentry thoughtfully authorized him to proceed with the business and the county, not following up to do what it is that the ordinance required that they do to prevent, you know, if there was a misunderstanding, if there was something else that they needed, that was the time to raise it, not 20 years later.

Mr. Bramlette - You've made a big deal out about having a business license. Yes, sir. And that, um, it is dependent upon having a use permit.

Mr. Leming – Yes, sir.

Mr. Bramlette - But the that document wasn't site specific as to where that use permit had to be. It just had to have a use permit. Right.

Mr. Leming - Well, the, um, I think the answer to that question is that when they applied for the business license, it was always for the address of the pole building. You know, it was it was not for any other address. Year after year. That's the address that they used for the business. You know, after 2003, there was there was no other, uh, or after 2001, there was no other address they used.

Mr. Bramlette – Prior to 2003.

Mr. Leming - There was one in 2003. I'm sorry, sir.

Mr. Bramlette – Prior to 2003, there was a different address?

Mr. Leming – There was a different address on Black Meadow, yes, okay. Not far away.

Mr. Bramlette - And we have no knowledge of, of when the business license was first issued as to what site that was actually issued against.

Mr. Leming - No, I don't have any. But the address that has been used and was used when the permit was issued is the one for the, for the pole building. You know, I mean, it's not it's not some other address, you know, that has been the address has been the same for that property since 13614

until 2010 when the subdivision occurred. That was the, that was when another address was assigned to the house because it was on a different parcel. Okay. Yeah. Now, I know, I know that this, this is something that raises a lot of questions, but there were a lot of, uh, statements, I think, that were made by the Zoning Administrator that were what I'll describe as over the top. That went to motive, uh, which is just totally inapplicable here. Now, maybe some of my presentations over the top also. But, um, you know, these people thought they were doing what was right and thought they had obtained the things that they needed from the County to conduct their business.

You know, one thing that was said that's really important here, um, complaints. You know, Spotsylvania is a complaint only county. If, if the zoning office, if the zoning police, you would have zoning violations right and left in the County. I mean, you can find a zoning violation on almost any property, but the only way it comes to somebody's attention is through a complaint. In this case, it was for an unrelated matter. Nothing. Nothing had anything to do with the business. But your zoning officer says, oh, wait a minute, they don't have what they need. Of course, he's looking at today's standards. And it has been, it has taken a year to put all of this together and figure out what happened back then and what was issued, and why this didn't happen or why that didn't happen. But I think we've given you a pretty good representation of what this is about and why this is a zoning violation that should be overturned and or determined invalid because of the applicability of 15.2-2311C.

Mr. Bell - Any other questions from board members?

Ms. Robinson - Um, because there may have been a possible oversight in 2003 to 2000 and whatever. Why would we continue to look at it as an oversight and not bring it up to date?

Mr. Leming - Well, for the reasons that I, we talked about with regard to that code section. Because if they made a zoning determination, I've tried to set that up for you after 60 days. They don't get to change their mind, even if it was a mistake. That's what the, that's what the statute says. Okay. So, and this was in place, so in 2003, um, what the County did was to issue a zoning use permit, and that has to be read, I think, in conjunction with that ordinance section, before they issue that permit, they're required to come take a look. And they either did and said it's okay or they didn't. But in either, in either case, there was a zoning determination that was made or bypassed deliberately at that point, and a failure by the County to comply with the ordinance. So, it's not it's not a matter of their continuing to be in violation. What it comes down to is that under State law, it's too late for the County to raise it. They had their chance when they back in 2003. They could have come out then and looked at the property and said, wait a minute, there's no house. Are we doing this here? What is the, what is this? This is for a home, but there's no home. They didn't do it. So that that's over and the county had the chance. And the purpose of that statute is to prevent this exact kind of thing. So that years and years after the fact, the County finds something that they didn't do years and years and years ago, and these people have used this for their livelihood, for their family. And then, then the County looks back and says, oh, well, you should have done this way back then. So that's, I think, what it comes down to. They had the opportunity. The statute is there to protect them. It's to say to the County, stop, you made a determination. 60 days has passed and very clearly what the statute says. They have to rely on it. Good faith reliance they did. There's no evidence whatsoever that they knew that what they were doing was unlawful. You know, they kept applying for their business, their business license every year. And I don't want to, I don't want

to diminish the importance of that either, because that does have that connection requiring that every year. I don't know why the Commissioner of Revenue and the Zoning Office don't coordinate with each other, but that's what you all have on your web page saying if you want to get a business license, you've got to have a valid zoning use permit. Okay. So, somebody's dropping the ball and you can't hold that against them under that statute.

Mr. Bell - Any other questions from the board. We can open this up. I didn't know if your clients wanted to speak or had anything to add. We can open this up for Public.

Mr. Leming - Well, they, I don't think there's anything. Anybody here? Is there anything else that you all believe I missed or want to say about this? This is Mrs. Ramsay. Remember? She worked for BZA. Okay, so remind yourselves.

Ms. Ramsey - Just like to reiterate. Having had somewhat of a background working in a Mayor's Office for years under three mayors, working with town councils, there is no way we would have, um, taken it upon ourselves to say, okay, we're going to get one, we're going to get one over on Spotsylvania County. I mean, as an individual, um, I'm retired now, but previously in a professional setting to enforce County code. Um, I, there's no way we would have done something intentionally to have undermined, you know, your authority or the authority of this County that, you know, when we bought the property, we obviously, I think Mr. Lemming has explained it. You know, it was, it was legal, it was running with a current business license and all of those things were already in place. And when we found out the one violation about the apartment, we took care of that, you know, that was something that was previously there. We assumed it was something we could carry over. They said no. And so, we took care of that. I mean, we've even gone, we've even had, um, the fire and rescue people come in to look, to make sure that there's access. There's, and there's no problem at all with that. I mean, you know, we've tried other steps and the bottom line is the requirements. That was told to us that we were going to have to do in order to bring this compliant with the new codes. It was cost prohibitive. Yes, we bought that separate property to supplement our retirement income. That's why we bought it. And then to have to bring it up to what today's code is, you know, \$70,000 or more. We've gotten estimates on paving and all of those types of things. It's just cost prohibitive. It's not going to allow us to be able to use that property for the purpose that we bought it.

Mr. Bell - Can I just ask a follow up question? Um, you would have to, as the owners of the property, under a special use permit front that cost, you know, paving whatever. Um, but you are not the owner of the business, correct? Um, have you had any discussions with the owner of the business about going in together to cover the cost for a SUP?

Ms. Ramsay - Well, this is the thing. If it was the \$6,000 cost and that's it, we would have done that. We, like Mr. Lemming, but we would not have invested in his retirement. We would have done that. But when we met with the group, you know, to see what we needed to do, you know, there was paving there were all of these requirements in engineering, all of these things. It was just totally unaffordable for us. I mean, we just can't afford that. Yeah. So, we were we talked about. Sure. If it was just the cost of the permit. Okay, and I think the Lathem's had even said, you know, we will help you with that fee. Um, but we knew that going before then, that board, they would

have said, well, did you pave, did you do this? No, we can't afford that. It would have just diminished our, uh, our retirement income. So, we're not owners of the business.

Mr. Leming – It's cheaper for me to come to a BZA hearing than for them to file a zoning application. Anything else? I don't want to put you on the spot, but anything else that, uh, you all are the only ones that know you were there. Uh, there's something that needs to be clarified or anything you want to add to what we talked about or did we? We spent a lot of time talking with the neighbors and these people get along great. They love there they love their tenants and the tenants like their landlords, you know, but, you know, they would like to continue this. And Mr. Um, Mr. Gentry, um, you know, one of the first things I said, well, you know, did they, what did they tell you about the property? I mean, did they make any false any misrepresentations to you know, it was very clear that what the what the Gentry's had represented to the, uh, to the Ramsey's was what they absolutely believed about the property. You know, this is a caveat emptor state. You don't have a course of action there. Okay. So that's the that's the horns of the dilemma. But you can solve it by applying Virginia code section 15.2-2311C or holding that that is simply not a valid, uh, uh, violation of the zoning ordinance and overturning that. All right. Thank you. And I don't, we, there were a number of people that had come the first time we were here. When I was here in March, we had several of your neighbors that had come up, and some of them came back in June, I think, didn't they? Okay. But, you know, three times is a lot to ask people to come to these things. But please look at the, um, the eight statements from your neighbors, the neighbors and nearby property owners, uh, particularly about the business, if you would. All right, all right. Thank you all. If there are no other questions. And thank you all, have the patience of Job. Well, the men, yes, but thank you all.

Mr. Bell – He stated the hearing would be continued to the August meeting.

Ms. Shealy – If anyone is interested in going to the Certified BZA member training, please let us know and we can get you registered. The opening session is an in-person session, that's one day. The closing session in October is just one day, and there is homework in-between.

Mr. Bramlette - No, I did it in 2012. Three days in Richmond. Ten-day course over a period of time. And we also had to go to another Spotsylvania, to another board and see what they were doing against what we had envisioned. And we had to go as a sit in to this board and then go to another board, King George, for me to see how they'd conducted it.

Mr. Leming – He advised that he needs clarification on the next hearing date of the BZA.

Mr. Bell – The 19th of August.

Mr. Leming – I, um, have a public hearing scheduled in King George at the same time and will be unavailable. The notices and advertisement have already occurred. My partner again and have her here, but she's not going to have the benefit of having heard any of our discussion or any of your questions. So, I would ask you to take that into consideration. Um, you know, I don't want the Ramsey's to be here, not represented by counsel. And certainly, when we came here tonight, we were not expecting that something was going to get, and I appreciate the compromise that you

all were trying to work out here. I can't be so continuous. Everybody can have their say. But, um, on that particular day.

There was discussion about the 90 day requirements.

Mr. Leming - Oh, I'm sure. And but I've already blown part of that because I asked you for the, the continuance in April. So, I mean, you know, I think probably that under any circumstance would have carried it to tonight if it's been 90 days since then, if not last month. and I realized y'all didn't have a quorum. But, you know, it's been certainly it's been 90 days since we were last going to have a hearing in April. So, I don't know. I don't know what you do about that. And I don't know what the consequence is because as I indicated, I don't see anything in the bylaws or under state law that that permit that. Have all these other obligations and, you know, other clients, some of them not nearly as nice as the Ramsey's. Counting on me to do things. Okay. All right. Well, thank you very much. Yes, please. Please feel free to.

There was brief discussion amongst staff regarding room availability and advertising.

Ms. Mann provided clarification on required motions.

Ms. Shealy - And again, can I just say that this, um, was postponed requested by, Mr. Lemming three times for a continuation. So, it continues to be a cost to the County for advertising. So, it's been at his, except for the last one when we did not have a quorum. But I have the request, and I spoke with the chairman regarding continuing that one, also prior to, um, not having a full board. So I, I wouldn't want to, you know, violate any 90-day time frame if that's what it is. But we already have probably done that, except for we have had a request for continuance for all of these. And I believe that if it's at the request of the applicant.

Mr. Leming - Um, the board, has the board, this board has granted me one continuance, and I appreciate that. So, I don't, I continue to dislike the representations that are being made now. Miss Shealy was prepared to ask for something in June, but that's irrelevant because you didn't have a quorum. Okay. So anyway, I can't do anything about the timing of this and about the membership that you get here and other conflicts. So, I don't I don't really think it's fair or appropriate to throw that back up. Uh, we're doing the best we can, and I'll make my dates available, you know, to try to accommodate you. But I do not appreciate Miss Shealy saying, oh, well, you know, we have all this cost and bear these expenses and, oh, we've continued it three times for him because that's not accurate. Yeah.

Mr. Bramlette - Yeah, sir. Would, uh, would you say you have presented your case to this court at this time?

Mr. Leming - Oh, yes, sir. The only thing it really comes down to is whether or not you think about this thing for a month and whether you have any other questions.

Mr. Bramlette - so you're, so you're partner lawyer should be able to sit here and listen to the board have our discussions, because that's the next step in this procedure.

Mr. Leming – She's a good listener.

Mr. Bramlette - So you know I would assume that you would give her your notes and therefore, um, you know, if it's down to you've made your presentation and it's up to the board now to have its discussions and vote, then there should be no reason why we couldn't do it on the 19th with her and presents.

Ms. Mann – we can also provide a transcript ahead of the meeting.

Mr. Leming - All right. Let me let me tell you what I think about what you've just said. And you know, Mr. Bramlett, that I'm married to my partner? And so, when I asked her to come do something like this, it's not like just asking a subordinate associate to do it. Uh, and, you know, I have to say, this is, as these cases go, one of the more complicated ones. So, what it for her to intelligently answer your questions? She's got to be as up on the case and the facts as I am, because you all have heard all this, and she can read a transcript. Sure. So, I mean, that's a possibility, but the last thing in the world that I want to do is to go back to that well, one more time and say, remember that the Ramsey's case down in Spotsylvania. Well, here's what they did. And what that means is, you know, they want us to come back on the 19th and I can't so I understand what you're saying, though I would appreciate, uh, I mean, if there's another way to do it. Tell you what. You know what if. I mean, I'm not sure it really matters, uh, to this county, uh, if this case doesn't get addressed again until the Fall. So, um, I will on the record. I'll tell you on the record, I will wait again. I had to do this in in March or in April. I will waive any 90-day argument, which I think we can do by agreement.

Mr. Bramlette - That was going to be my next question. Okay. As long as she has it on file that you agree that you would not use this as appellate above us, if you don't go your way, then we're okay.

Mr. Leming - If well, if you let me come back. Yes, yes. If you let me come back, say see you in September, uh, then yes, I would agree to waive that now if you make her come at the next meeting.

Motion and vote: On a motion by Mr. Thillmann, seconded by Mr. Bramlette, the BZA voted to continue the hearing to September 16, 2025.

Vote:

Ayes: 6 Winkler, Bramlette, Robinson, Bell, Brown, and Thillmann

Nays: 0

Absent: 0

Abstain: 0

The motion passed 6-0.

Adjournment:

Motion and vote: On a motion by Mr. Thillmann, seconded by Mr. Bramlette, the BZA voted to continue the hearing to September 16, 2025.

Vote:

Ayes: 6 Winkler, Bramlette, Robinson, Bell, Brown, and Thillmann

Nays: 0

Absent: 0

Abstain: 0

The motion passed 6-0.

The meeting adjourned around 11:30 p.m.

Minutes approved August 19, 2025

Paulette Mann, Commission Secretary